GROUND LEASE AGREEMENT

10-30 Pier Street, Port Calloway, Connecticut 06801
Assessor's Parcel No. 127-003-0045

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DRAFT — June 27, 2025

PRIVILEGED AND CONFIDENTIAL — ATTORNEY WORK PRODUCT — SUBJECT TO FRE 408 AND CONN. CODE OF EVID. § 4-8

Prepared by Hargrove & Linden LLP, counsel to Meridian Gateway Holdings LLC. This draft is submitted for discussion purposes only, does not constitute an offer capable of acceptance, and remains subject to (i) approval of the Authority's Board of Commissioners by duly adopted resolution, (ii) approval of the City of Port Calloway as to the Tax Abatement Agreement, and (iii) final credit approval of the Leasehold Mortgagee.

PREAMBLE AND RECITALS

THIS GROUND LEASE AGREEMENT (this **"Lease"**) is made and entered into as of the ____ day of _____, 2025 (the **"Effective Date"**), by and between:

CITY OF PORT CALLOWAY REDEVELOPMENT AUTHORITY, a public body corporate and politic organized and existing under the provisions of the Connecticut General Statutes, Section 8-125 *et seq.*, with its principal offices located at 75 Municipal Plaza, Port Calloway, Connecticut 06801, as landlord (the **"Authority"** or **"Landlord"**); and

MERIDIAN GATEWAY HOLDINGS LLC, a Delaware limited liability company duly formed on August 14, 2019, and authorized to transact business in the State of Connecticut, with its principal place of business at 400 Harborview Drive, Suite 1200, Port Calloway, Connecticut 06801, as tenant (the **"Tenant"**).

Landlord and Tenant are sometimes referred to in this Lease individually as a **"party"** and collectively as the **"parties."**

RECITALS

A. Landlord holds fee simple title to a certain parcel of land consisting of approximately 3.2 acres (139,392 square feet) located at 10-30 Pier Street, Port Calloway, Connecticut 06801, identified on the records of the Port Calloway Tax Assessor as Parcel No. 127-003-0045 (the **"Premises"**), which Landlord acquired by final judgment of condemnation entered in 2012.

B. Landlord is authorized by its enabling legislation and by Resolution No. 2025-047, adopted by its Board of Commissioners on June 5, 2025, to lease the

Premises to Tenant for a term of ninety-nine (99) years and to execute and deliver this Lease and the related documents contemplated hereby.

C. On June 10, 2025, Landlord and Tenant executed a binding-in-part term sheet (the **"Term Sheet"**) setting forth the principal business terms upon which the parties agreed to negotiate and execute this Lease. The Term Sheet contemplated that, upon execution and delivery of this Lease, this Lease would supersede the Term Sheet in its entirety.

D. Tenant has agreed to develop on the Premises a mixed-use waterfront project consisting of a twenty-eight (28) story residential rental tower, a six (6) story Class A office building, ground-floor retail space, structured and/or below-grade accessory parking, and a minimum of 8,000 square feet of publicly accessible open space on the waterfront, at a total development cost of approximately $425,000,000 (the **"Project"**).

E. Tenant intends to finance the Project with a construction loan from Bayside Federal Lending Corp. in the original principal amount of $285,000,000, preferred equity from Coventry Capital Partners LP in the amount of $95,000,000, and co-investment capital from Tenant's members in the amount of $45,000,000. The Parties acknowledge that the availability of such financing is conditioned upon this Lease containing the Leasehold Mortgage protections set forth in Article 17, and that such financing is essential to Tenant's performance of its obligations hereunder.

F. The Premises are subject to an Environmental Land Use Restriction recorded March 22, 2018 in Volume 412, Page 88 of the Port Calloway Land Records (the **"ELUR"**), and to residual petroleum hydrocarbon contamination documented in the Phase I Environmental Site Assessment dated March 15, 2025 and the Phase II Environmental Site Assessment dated May 2, 2025, each prepared by Halcyon Environmental Consultants Inc. The Parties intend that this Lease allocate responsibility for the investigation, remediation, and long-term management of the environmental conditions at the Premises as set forth in Article 9.

G. The Premises lie within FEMA Flood Zone AE, with a Base Flood Elevation of twelve (12) feet NAVD88, and the Parties intend that the Project be designed and constructed to provide freeboard above the Base Flood Elevation as required by this Lease and applicable law.

H. The Parties acknowledge that the public benefits of the Project — including the remediation and productive reuse of a contaminated and underutilized waterfront parcel, the creation of housing (including affordable housing), the construction of a publicly accessible waterfront open space connected to the existing promenade, the generation of employment, and the expansion of the municipal tax base — constitute good and valuable consideration for Landlord's entry into this Lease and for the tax abatement contemplated by Article 8.

NOW, THEREFORE, in consideration of the mutual covenants contained in this Lease, the payment of rent, and other good and valuable consideration, the

receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

ARTICLE 1 — DEFINITIONS AND INTERPRETATION

Section 1.1 Defined Terms. As used in this Lease, the following terms have the meanings set forth below. Other terms are defined elsewhere in this Lease and have the meanings there ascribed to them.

"Abatement Period" has the meaning set forth in Section 8.6.

"Affiliate" means, with respect to any Person: (a) any entity that directly or indirectly controls, is controlled by, or is under common control with such Person; (b) in the case of Tenant, any entity in which Marcus Ellison holds, directly or indirectly, a controlling interest; (c) Coventry Capital Partners LP, its affiliates, subsidiaries, related funds, parallel funds, co-investment vehicles, and any entity managed or advised by Coventry Capital Partners LP or its affiliates; (d) any entity resulting from an internal reorganization or restructuring of such Person's ownership, provided that Marcus Ellison or Coventry Capital Partners LP (or their respective affiliates) retain a controlling interest in the resulting entity; and (e) any Leasehold Mortgagee or any Affiliate thereof. For purposes of this definition, **"control"** means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of an entity, whether through the ownership of voting securities, by contract, or otherwise.

"Applicable Percentage" means, for any Rent Year during the Abatement Period, the percentage set forth in Section 8.6(a).

"Appraised Value" means the fair market value of the Improvements determined in accordance with the appraisal procedure set forth in Section 5.6.

"Base Flood Elevation" or **"BFE"** means twelve (12) feet NAVD88, as established by FEMA Flood Insurance Rate Map Panel No. 09009C0301G, effective January 15, 2020.

"Base Rent" has the meaning set forth in Section 6.1.

"Breakpoint" means $28,500,000, as adjusted from time to time in accordance with Section 7.5.

"Bulkhead" means the approximately 480 linear feet of steel sheet pile and concrete cap bulkhead, together with all associated lagging, tie-backs, anchorages, backfill, and appurtenances, located along the eastern waterfront boundary of the Premises.

"Bulkhead Assessment" has the meaning set forth in Section 4.11.

"Business Day" means any day other than a Saturday, Sunday, or day on which national banking institutions in Connecticut are authorized or required to be closed.

“Casualty” means any damage to or destruction of the Improvements or the Premises by fire, windstorm, flood, storm surge, earthquake, or other casualty or act of God.

“City” means the City of Port Calloway, Connecticut, a municipal corporation organized and existing under the laws of the State of Connecticut.

“CPI” means the Consumer Price Index for All Urban Consumers, Northeast Region, All Items, Not Seasonally Adjusted (Series ID CUUR0100SA0), as published by the United States Bureau of Labor Statistics, or, if such index ceases to be published, a comparable successor index selected in accordance with Section 6.6(d).

“DEEP” means the Connecticut Department of Energy and Environmental Protection, or any successor agency.

“Development Milestones” means Milestones 1 through 4 set forth in Section 4.2.

“ELUR” means the Environmental Land Use Restriction recorded March 22, 2018 in Volume 412, Page 88 of the Port Calloway Land Records, as the same may be modified, amended, or released from time to time with the approval of DEEP, including all activity and use limitations, engineered barrier requirements, and reporting obligations contained therein or in any DEEP-approved Environmental Management Plan.

“Environmental Laws” means all federal, state, and local statutes, regulations, rules, ordinances, orders, and permits relating to pollution, contamination, protection of the environment, human health, or natural resources, including the Connecticut Remediation Standard Regulations (Regs. Conn. State Agencies § 22a-133k-1 *et seq.*), the Connecticut Transfer Act (Conn. Gen. Stat. § 22a-134 *et seq.*), Conn. Gen. Stat. § 22a-133o, the federal Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. § 9601 *et seq.*), the Resource Conservation and Recovery Act (42 U.S.C. § 6901 *et seq.*), and the Clean Water Act (33 U.S.C. § 1251 *et seq.*).

“Event of Default” has the meaning set forth in Section 19.1 (as to Tenant) and Section 19.4 (as to Landlord).

“Force Majeure Event” means any of the following events or circumstances beyond the reasonable control of the party asserting it, and not caused by such party’s negligence, willful misconduct, or failure to pay money: acts of God; hurricane, tropical storm, nor’easter, storm surge, tidal flooding, coastal inundation, and other severe weather events; fire, flood, earthquake, and other natural disasters; war, terrorism, acts of civil unrest, riot, and insurrection; epidemic, pandemic, and public health emergency, together with any governmental order, moratorium, or restriction associated therewith; strikes, lockouts, and other labor disputes not involving the asserting party’s own employees; governmental orders, moratoria, permit delays, and delays in the issuance of approvals by any Governmental Authority, including DEEP and the

City; shortage, unavailability, or delay in delivery of construction materials, equipment, or labor resulting from conditions in the marketplace beyond the asserting party's reasonable control; and any other event or circumstance that is not reasonably foreseeable and is beyond the reasonable control of the asserting party. **Notwithstanding the foregoing, "Force Majeure Event" shall not include** (i) lack of funds, insufficiency of capital, or the failure of any financing to close, (ii) the failure or refusal of any Leasehold Mortgagee to advance funds, or (iii) any matter arising from Tenant's own act, omission, negligence, or willful misconduct.

"Governmental Authority" means the United States, the State of Connecticut, the City, the Authority, and any agency, department, commission, board, bureau, instrumentality, or political subdivision thereof having jurisdiction over the Premises or the Project.

"Gross Revenues" has the meaning set forth in Section 7.2.

"Hard Costs" means all actual, out-of-pocket costs incurred by Tenant for labor, materials, equipment, and contractor and subcontractor charges in the construction of the Improvements, including general conditions, site work, utility connections, and landscaping, but excluding Soft Costs.

"Hazardous Materials" means petroleum and petroleum products, including total petroleum hydrocarbons, gasoline-range and diesel-range organics, volatile and semi-volatile organic compounds, polychlorinated biphenyls, heavy metals, asbestos, urea formaldehyde, per- and polyfluoroalkyl substances, and any other substance, material, or waste that is regulated as hazardous, toxic, or a pollutant under any Environmental Law.

"Improvement Compensation" has the meaning set forth in Section 5.5.

"Improvements" means all buildings, structures, foundations, slabs, parking structures, utilities, fixtures, landscaping, and other improvements of every kind now or hereafter constructed, installed, or placed on the Premises by Tenant or its subtenants, together with all alterations, replacements, and additions thereto, but excluding Tenant's Trade Fixtures and Tenant's removable personal property.

"Lease Year" means each successive period of twelve (12) full calendar months during the Term, the first of which commences on the Lease Commencement Date and each subsequent Lease Year commencing on each anniversary of the Lease Commencement Date. **For all purposes of Articles 6, 7, and 8, the term "Lease Year" means "Rent Year" and not the calendar periods described in the preceding sentence.**

"Leasehold Mortgage" means any mortgage, deed of trust, assignment of leases and rents, or other security instrument now or hereafter granted by Tenant encumbering Tenant's leasehold estate in the Premises and the Improvements, together with all amendments, restatements, supplements,

extensions, renewals, and refinancings thereof, and all assignments and participations therein.

"Leasehold Mortgagee" means Bayside Federal Lending Corp., any successor holder of a Leasehold Mortgage, and any other Person that holds a Leasehold Mortgage in accordance with Article 17 and has delivered to Landlord the notice contemplated by Section 17.3.

"Indebtedness" means the aggregate principal, interest, fees, premiums, costs of enforcement, and other amounts secured by or owing under a Leasehold Mortgage.

"LEP" means a Licensed Environmental Professional licensed pursuant to Conn. Gen. Stat. § 22a-133v.

"LOC" has the meaning set forth in Section 10.1.

"Milestone Cure Period" has the meaning set forth in Section 5.2.

"New Lease" has the meaning set forth in Section 17.5.

"Permitted Exceptions" means those matters listed on Exhibit C.

"Permitted Use" has the meaning set forth in Section 11.1.

"Person" means any individual, corporation, limited liability company, partnership, joint venture, trust, estate, unincorporated association, governmental entity, or other legal entity.

"Phase 1" means the Residential Tower and the ground-floor retail space within the Project.

"Phase 2" means the Office Building within the Project.

"Premises" means the land described on Exhibit A, together with all rights, easements, and appurtenances benefiting the same, including the Bulkhead and the right to use the public utility easement described in Exhibit C to the extent permitted by applicable law.

"Project" has the meaning set forth in Recital D.

"Rent Commencement Date" has the meaning set forth in Section 6.3.

"Rent Year" means each successive period of twelve (12) full calendar months during the Term, the first of which commences on the Rent Commencement Date and each subsequent Rent Year commencing on each anniversary of the Rent Commencement Date.

"Reset Date" means each of Rent Years 16, 26, 36, 46, 56, 66, 76, 86, and 96.

"Residential Tower" means the twenty-eight (28) story residential rental building to be constructed on the Premises as part of Phase 1, together with its ground-floor lobby, amenity, and retail spaces.

“RSRs” means the Connecticut Remediation Standard Regulations, Regs. Conn. State Agencies § 22a-133k-1 *et seq.*

“Security Deposit” means the LOC (or cash deposit) required by Article 10.

“SNDA” means a Subordination, Non-Disturbance, and Attornment Agreement among Landlord, Tenant, and the Leasehold Mortgagee, substantially in the form attached as Exhibit E.

“Soft Costs” means all actual, out-of-pocket costs incurred by Tenant for architecture, engineering, legal, permitting, environmental, insurance, financing fees, developer fees, construction-period interest, and other indirect costs of developing the Improvements, determined in accordance with the approved Project budget.

“Substantial Completion” means, with respect to Phase 1, the issuance of a temporary or permanent certificate of occupancy for the Residential Tower and the ground-floor retail space such that the Residential Tower is ready for residential occupancy and the retail space is available for tenant fit-out; and, with respect to Phase 2, the issuance of a temporary or permanent certificate of occupancy for the Office Building.

“Tax Abatement Agreement” means an agreement among Tenant, Landlord, and the City providing for the phased assessment structure described in Section 8.6, in form and substance reasonably satisfactory to Tenant and approved by all necessary action of the City.

“Taxes” has the meaning set forth in Section 8.2.

“Term” has the meaning set forth in Section 2.4.

“Title Policies” means the ALTA Leasehold Owner’s Policy and the ALTA Leasehold Loan Policy to be issued by the Issuing Title Company in accordance with Section 2.5(b).

“Trade Fixtures” means Tenant’s and its subtenants’ furniture, equipment, telecommunications and data systems, signage, fixtures necessary to the operation of the Project’s businesses, and other personal property that is customarily removed by a tenant at the expiration of a lease and that can be removed without material damage to the Improvements.

“Transfer” has the meaning set forth in Section 18.1.

“Unavoidable Delay” has the meaning set forth in Section 19.10.

Section 1.2 Interpretation. In this Lease: (a) headings are for convenience only and do not affect interpretation; (b) references to Articles, Sections, and Exhibits are to this Lease; (c) “including” means “including without limitation”; (d) “days” means calendar days unless Business Days are specified; (e) references to any statute, regulation, or recorded instrument include amendments, successors, and replacements; (f) the singular includes the plural and vice versa; (g) where the context requires, any obligation of Landlord or

Tenant is to be performed at that party's sole cost and expense; (h) this Lease has been negotiated at arm's length between sophisticated parties represented by counsel, and no rule of construction resolving ambiguities against the drafting party shall apply; (i) references to "market" or "customary" standards mean the standards generally applicable to institutional long-term ground leases of comparable urban waterfront development sites; and (j) all monetary amounts are stated in United States dollars.

Section 1.3 Exhibits. The following Exhibits are attached to and incorporated in this Lease:

> **Exhibit A** — Legal Description of the Premises **Exhibit B** — ALTA/NSPS Land Title Survey (reference and surveyor's certification) **Exhibit C** — Permitted Exceptions **Exhibit D** — Form of Memorandum of Lease **Exhibit E** — Form of Subordination, Non-Disturbance, and Attornment Agreement **Exhibit F** — Form of Leasehold Mortgagee Recognition and New Lease Agreement **Exhibit G** — Form of Estoppel Certificate **Exhibit H** — Tenant Remediation Scope and Cost Allocation **Exhibit I** — Development Milestone Schedule **Exhibit J** — Form of Letter of Credit **Exhibit K** — Form of Affordable Housing Regulatory Agreement **Exhibit L** — Form of Tax Abatement Agreement

ARTICLE 2 — DEMISE, PREMISES, AND TERM

Section 2.1 Demise. Landlord hereby leases the Premises to Tenant, and Tenant hereby leases the Premises from Landlord, for the Term and subject to the covenants, conditions, and provisions of this Lease. The Premises are leased on a triple-net basis, subject only to Landlord's express obligations set forth in this Lease.

Section 2.2 Premises; Legal Description. The Premises consist of approximately 3.2 acres (139,392 square feet) of land located at 10-30 Pier Street, Port Calloway, Connecticut 06801, Assessor's Parcel No. 127-003-0045, as more particularly described on **Exhibit A**. The Parties acknowledge that:

(a) the description set forth on Exhibit A is the metes-and-bounds description derived from the ALTA/NSPS Land Title Survey prepared by Calloway Land Surveyors LLC, Thomas R. Pellegrino, PLS (Connecticut License No. PLS-008741), Survey Job No. CLS-2025-0417, plat dated April 28, 2025 (the **"Survey"**), and certified to Landlord, Tenant, Ridgepoint Title & Escrow Co., and the Leasehold Mortgagee;

(b) the area derived from the Survey's boundary courses (435.22 feet by 320.47 feet) is approximately 139,475 square feet, approximately 83 square feet more than the 139,392 square feet stated above and in the Term Sheet; the Parties agree that the Premises shall be deemed to contain 139,392 square feet for all purposes of this Lease, including the calculation of Base Rent per square foot, and that no adjustment to Base Rent shall be made on account of any discrepancy in area;

(c) the metes-and-bounds description set forth in Exhibit A to Title Commitment No. TC-2025-07821 (effective date June 1, 2025) issued by Ridgepoint Title & Escrow Co. does not conform to the Survey in bearings, distances, or computed area, and Landlord shall cause such description to be conformed to the Survey, and the Issuing Title Company to confirm in writing that its commitment and the Title Policy describe the same parcel, as a condition to the Lease Commencement Date; and

(d) the boundary of the Premises on the south is the northerly line of Assessor's Parcel No. 127-003-0044, as depicted on the Survey. Landlord represents that Assessor's Parcel No. 127-003-0044 is a separate parcel retained by Landlord and is not part of the Premises.

Section 2.3 Appurtenant Rights. Together with the Premises, Tenant shall have the right to use, in common with others entitled thereto and subject to the Permitted Exceptions and applicable law: (a) the public rights-of-way abutting the Premises for access and utilities; (b) the public utility easement described in Exhibit C; and (c) such other easements and rights as are appurtenant to the Premises.

Section 2.4 Term. The term of this Lease (the **"Term"**) shall commence on October 1, 2025, or such later date as is determined in accordance with Section 2.5 (the **"Lease Commencement Date"**), and shall expire at 11:59 p.m. Eastern Time on September 30, 2124 (the **"Expiration Date"**), unless sooner terminated as provided in this Lease. The Term is ninety-nine (99) years. Tenant acknowledges that the Term Sheet provided that no renewal or extension options were contemplated and that the ninety-nine (99) year Term constitutes the full duration of this Lease, subject only to Section 20.5.

Section 2.5 Lease Commencement Date; Conditions Precedent. The Lease Commencement Date shall be October 1, 2025, or, if later, the first day of the first calendar month following satisfaction or written waiver (by the party entitled to waive) of each of the following conditions precedent:

(a) execution and delivery of this Lease by both Parties;

(b) delivery by Ridgepoint Title & Escrow Co. (or another nationally recognized title insurance company reasonably acceptable to Tenant) (the **"Issuing Title Company"**) of a commitment, marked to issue, for an ALTA Leasehold Owner's Policy (2006 form, as amended) in the amount of $425,000,000 insuring Tenant's leasehold estate, and an ALTA Leasehold Loan Policy (2006 form, as amended) in the amount of $285,000,000 insuring the Leasehold Mortgagee's first-priority lien, in each case subject only to the Permitted Exceptions and such other exceptions as Tenant has approved in its reasonable discretion, and including the ALTA 13-06 (Leasehold — Owner's) and ALTA 13.1-06 (Leasehold — Loan) endorsements;

(c) delivery of the Survey and the Surveyor's certification, and delivery of an updated survey if and to the extent required by the Leasehold Mortgagee;

(d) delivery by Tenant of the LOC in the amount of $5,700,000 in accordance with Article 10;

(e) execution and delivery by Landlord and the Leasehold Mortgagee of the SNDA;

(f) delivery by Landlord of evidence reasonably satisfactory to Tenant that the mechanics' lien filed by Calloway Marine Demolition Inc. on April 3, 2025 in the amount of $187,500, recorded at Volume 418, Page 302 of the Port Calloway Land Records (the **"Calloway Lien"**), has been discharged of record, bonded over in compliance with Conn. Gen. Stat. § 49-37, or otherwise insured over by the Issuing Title Company without exception (the **"Lien Condition"**);

(g) delivery by Landlord of a certified copy of Resolution No. 2025-047, certified by the Chair and attested by the Executive Director, together with a certificate of the Executive Director that the resolution has not been amended, modified, or rescinded and that the execution and delivery of this Lease have been duly authorized;

(h) delivery by Landlord of an executed Tax Abatement Agreement, duly approved by the City and effective as of the Rent Commencement Date;

(i) delivery by Tenant of (i) a certificate of good standing of Tenant issued by the Secretary of State of the State of Delaware dated not more than thirty (30) days prior to the Lease Commencement Date, (ii) a certificate of authority to transact business issued by the Secretary of the State of Connecticut, and (iii) a certificate of the Managing Member of Tenant certifying the resolutions or written consents of Tenant's members authorizing the execution and delivery of this Lease and the Leasehold Mortgage;

(j) receipt by Tenant of final site plan approval and such zoning approvals, special permits, and variances as are required for the Project as described in Section 4.7; and

(k) delivery by Landlord of the Bulkhead Assessment contemplated by Section 4.11;

(l) receipt of the DEEP interpretation, variance, or modification described in Section 9.3(b) confirming that the ground-floor residential lobby, amenity, leasing, and management spaces contemplated by the Project are permitted under the ELUR (or, if such confirmation has not been obtained, written confirmation from Landlord that it has elected to proceed with a ground-floor program limited to commercial, retail, parking, mechanical, and other non-habitable uses consistent with Section 9.3(c), together with Tenant's written acknowledgment);

(m) delivery of the recorded amendment to the Recorded ROFR and evidence of recordation, as required by Section 18.6; and

(n) delivery of the recorded amendment to the Declaration of Restrictive Covenants and evidence of recordation, as required by Section 11.5(b).

If any condition precedent set forth in this Section 2.5 has not been satisfied or waived on or before March 31, 2026 (the **"Conditions Outside Date"**), then either Party may, by written notice to the other delivered before such condition is satisfied, terminate this Lease, whereupon the LOC shall be returned to Tenant within ten (10) Business Days, each Party shall bear its own costs, and neither Party shall have any further obligation to the other except for those obligations that expressly survive termination. The Conditions Outside Date shall be extended day-for-day for Unavoidable Delay affecting satisfaction of such conditions.

Section 2.6 Delivery of Possession. Landlord shall deliver exclusive possession of the Premises to Tenant on the Lease Commencement Date, free and clear of all tenancies, occupants, liens (other than Permitted Exceptions), and encumbrances, and in the condition required by Article 3.

Section 2.7 Memorandum of Lease; Recording. The Parties shall execute, acknowledge, and record a Memorandum of Lease substantially in the form attached as Exhibit D in the Port Calloway Land Records simultaneously with the execution of this Lease. The Memorandum of Lease shall not disclose the economic terms of this Lease other than the Term, the Base Rent, and the identity of the Parties. Tenant may, at its election, record this Lease in its entirety if and to the extent required by the Leasehold Mortgagee or applicable law. Each Party shall execute such further recordable instruments as are reasonably requested to evidence the existence of this Lease, including any instrument required by the Issuing Title Company.

Section 2.8 No Merger. There shall be no merger of the leasehold estate created by this Lease with the fee estate in the Premises by reason of the fact that the same Person may hold or acquire, directly or indirectly, both such estates, unless and until the holder of both estates has executed and recorded a written instrument expressly effecting such merger.

Section 2.9 Landlord's Reserved Rights. Landlord reserves the right, without liability to Tenant and without constituting an eviction or disturbance of Tenant's use or possession, to enter upon the Premises at reasonable times and upon not less than ten (10) Business Days' prior written notice (except in the case of an emergency, in which case no notice shall be required) for the purpose of inspecting the Premises, performing any obligation of Landlord that Tenant has failed to perform after notice and the expiration of any applicable cure period, or exercising any right reserved to Landlord under this Lease. Any such entry shall be conducted so as not to unreasonably interfere with Tenant's construction or operations, and Landlord shall repair any damage caused by such entry at its sole cost.

ARTICLE 3 — TITLE, CONDITION, AND TITLE INSURANCE

Section 3.1 Condition of Premises. Except as expressly set forth in this Lease, Tenant accepts the Premises in their "AS IS, WHERE IS" condition as of the Lease Commencement Date. **Notwithstanding the foregoing, the "AS IS" acceptance shall not apply to, and Tenant does not waive, and Landlord expressly warrants, represents, and covenants as to, the following:**

(a) Landlord's fee simple title to the Premises, free and clear of all liens, encumbrances, and defects other than the Permitted Exceptions;

(b) the absence of any pending or, to Landlord's knowledge, threatened condemnation, rezoning, or governmental taking affecting the Premises;

(c) Landlord's compliance with its obligations under Article 3.6 with respect to the Calloway Lien;

(d) the environmental matters addressed in Section 9.1;

(e) the structural condition of the Bulkhead as addressed in Section 4.11; and

(f) the sufficiency of the Premises, together with the Permitted Exceptions, to support the Project as contemplated by Section 4.7.

Section 3.2 Landlord's Title Representations and Warranties. Landlord represents and warrants to Tenant as of the Effective Date and as of the Lease Commencement Date that: (a) Landlord is the sole fee simple owner of the Premises; (b) Landlord has good right and lawful authority to lease the Premises for the Term; (c) the execution and delivery of this Lease have been duly authorized by all necessary action of Landlord, and the persons executing this Lease on behalf of Landlord are duly authorized officers of Landlord; (d) this Lease is a valid, binding, and enforceable obligation of Landlord, subject to applicable bankruptcy and equitable principles; (e) there is no pending or, to Landlord's knowledge, threatened litigation, action, or proceeding affecting the Premises or the validity of this Lease; (f) Landlord has not granted any option, right of first refusal, lease, license, or other right to lease or acquire the Premises or any interest therein, other than the matters described in Exhibit C; (g) Landlord has no knowledge of any undisclosed environmental condition at the Premises other than those disclosed in the Phase I and Phase II Environmental Site Assessments and the ELUR; and (h) Landlord has delivered to Tenant true and complete copies of all documents in Landlord's possession or control relating to title to the Premises, including the 2012 Final Judgment of Condemnation, the recorded easements described in Exhibit C, the ELUR, the recorded Declaration of Right of First Refusal (Volume 405, Page 55), and the recorded Declaration of Restrictive Covenants (Volume 408, Page 230).

Section 3.3 Permitted Exceptions. Tenant's leasehold estate is subject to the Permitted Exceptions listed on Exhibit C and to the matters permitted by this Lease. **Landlord covenants to remove or cause to be removed from the title to the Premises (or cause the Issuing Title Company to insure over**

without exception) each of the following, at Landlord's sole cost and expense, on or before the Lease Commencement Date:

(a) the Calloway Lien, in accordance with Section 3.6;

(b) any matter disclosed by the Survey that constitutes an encroachment by adjoining property onto the Premises, or an encroachment by the Bulkhead or other improvements of Landlord onto the Premises;

(c) any judgment, lis pendens, federal or state tax lien, or other lien arising from acts or omissions of Landlord or its predecessors; and

(d) any other matter objected to by Tenant or the Leasehold Mortgagee that is not a Permitted Exception.

Section 3.4 Objections to Title; Tenant's Right to Terminate. Tenant may object in writing to any title matter disclosed by the Title Commitment, the Survey, or any update thereof that is not a Permitted Exception. Landlord shall, at its sole cost and expense, cure each such objection on or before the Lease Commencement Date or cause the Issuing Title Company to insure over the same to Tenant's reasonable satisfaction. **If Landlord has not cured or insured over each such objection by the Conditions Outside Date, Tenant may (a) waive the objection and proceed to the Lease Commencement Date, (b) terminate this Lease in accordance with Section 2.5, or (c) proceed to the Lease Commencement Date and retain its rights to recover from Landlord the cost of curing the objection, together with an Express Offset for the diminution in value of the leasehold estate attributable to the uncured matter.**

Section 3.5 Title Policy. Tenant shall obtain, at its cost, an ALTA Leasehold Owner's Policy and, on behalf of the Leasehold Mortgagee, an ALTA Leasehold Loan Policy from the Issuing Title Company, in the amounts and forms described in Section 2.5(b). **Landlord shall cooperate with Tenant, at no cost to Landlord other than its own attorney's fees, to cause the issuance of the Title Policies with all endorsements reasonably required by Tenant and the Leasehold Mortgagee, and shall execute such affidavits, indemnities, and certificates as the Issuing Title Company may reasonably require.** If the Issuing Title Company requires an affidavit or indemnity from Landlord to eliminate the standard printed exceptions (including the survey exception and the rights of parties in possession exception), Landlord shall deliver the same in a form reasonably acceptable to Landlord.

Section 3.6 Calloway Lien. The Parties acknowledge that the Calloway Lien was filed against Landlord's fee interest for bulkhead demolition work performed on the Premises before any interest in the Premises was conveyed or leased to Tenant, and that the Calloway Lien is not the responsibility of Tenant. Landlord shall, at its sole cost and expense, cause the Calloway Lien to be discharged of record, bonded over pursuant to Conn. Gen. Stat. § 49-37 in a penal sum sufficient to cover the lien plus interest and costs, or otherwise insured over without exception, on or before the Lease Commencement Date.

Landlord shall indemnify, defend, and hold Tenant and the Leasehold Mortgagee harmless from and against all loss, cost, and expense (including reasonable attorneys' fees) arising from or relating to the Calloway Lien, the underlying work, or any claim by Calloway Marine Demolition Inc. or its successors or assigns. **Landlord's obligations under this Section 3.6 shall survive the expiration or earlier termination of this Lease.**

Section 3.7 Survey. Tenant has caused the Survey to be prepared and certified as described in Section 2.2. If the Leasehold Mortgagee, the Issuing Title Company, or applicable law requires an updated or re-certified survey (including an update required to satisfy the ninety (90)-day recency condition customarily imposed by construction lenders), the cost shall be borne by Tenant.

Section 3.8 Covenant of Quiet Enjoyment and Warranty of Title. Landlord covenants that so long as no Event of Default by Tenant has occurred and is continuing, Tenant shall peaceably and quietly have, hold, and enjoy the Premises and the Improvements during the Term without hindrance, ejection, or molestation by Landlord or any Person lawfully claiming by, through, or under Landlord, subject to the terms of this Lease. Any Person acquiring the fee interest in the Premises from Landlord, whether by purchase, foreclosure, exercise of a power of sale, deed in lieu of foreclosure, operation of law, or otherwise, shall take the fee interest subject to this Lease and shall recognize Tenant's leasehold estate.

Section 3.9 Fee Estate Encumbrances. Landlord shall not, during the Term, grant or suffer any mortgage, deed of trust, lien, pledge, or other voluntary encumbrance of its fee interest in the Premises, other than a fee mortgage that (a) by its terms is expressly subordinate and junior to this Lease, and (b) is subject to a subordination and non-disturbance agreement, in form and substance reasonably satisfactory to Tenant and each Leasehold Mortgagee, pursuant to which the fee mortgagee recognizes this Lease and agrees that Tenant's leasehold estate and the Leasehold Mortgage shall not be disturbed in the event of foreclosure of the fee mortgage. Any encumbrance of the fee interest that does not comply with this Section 3.9 shall be void as against Tenant and the Leasehold Mortgagee and shall not affect this Lease. Landlord shall not voluntarily convey its fee interest other than subject to this Lease, and any successor fee owner shall be deemed to have assumed Landlord's obligations under this Lease.

Section 3.10 Landlord Consent to Collateral Assignments. Landlord acknowledges that Tenant intends to execute and deliver to the Leasehold Mortgagee a first-priority collateral assignment of all subleases, leases, rents, revenues, and other income arising from the Project, an assignment of construction contracts and plans, and a pledge of Tenant's ownership interests. **Landlord consents to each such assignment and pledge without the need for any further consent, approval, or joinder of Landlord and without the payment of any consent fee, administrative charge, or other compensation, and Landlord agrees that none of the foregoing shall**

constitute a Transfer requiring Landlord's consent or triggering the Right of First Refusal described in Article 18.

ARTICLE 4 — DEVELOPMENT, MILESTONES, AND PERFORMANCE

Section 4.1 Development Obligation. Tenant shall develop, construct, and operate the Project on the Premises substantially in accordance with the plans and specifications approved in connection with the site plan approvals referenced in Section 4.7, and in compliance with this Lease, the ELUR, and applicable law. Tenant shall commence construction of the Project upon satisfaction of the conditions precedent in Section 2.5 and shall prosecute construction with reasonable diligence, subject to Unavoidable Delay and the extensions set forth in Sections 4.3 and 4.4.

Section 4.2 Development Milestones. Tenant shall achieve each of the following Development Milestones within the time periods specified, as measured from the Lease Commencement Date (assuming a Lease Commencement Date of October 1, 2025) and as extended pursuant to Sections 4.3 and 4.4:

Milestone	Description	Deadline (months from Lease Commencement Date)	Outside Date (assuming 10/1/2025)
Milestone 1	Commencement of Construction	18 months	April 1, 2027
Milestone 2	Completion of Structural Frame (Residential Tower)	42 months	April 1, 2029
Milestone 3	Substantial Completion of Phase 1	60 months	October 1, 2030
Milestone 4	Substantial Completion of Phase 2	84 months	October 1, 2032

(a) **"Commencement of Construction"** means the physical pouring of footings for at least one building within the Project, following the issuance of all building permits required for such work by the Port Calloway Building Department.

(b) **"Completion of Structural Frame"** means the topping-out of the structural steel and/or concrete frame for the Residential Tower.

(c) **“Substantial Completion of Phase 1”** and **“Substantial Completion of Phase 2”** have the meanings given in Section 1.1.

Section 4.3 Force Majeure Extensions. Each deadline set forth in Section 4.2 shall be extended on a day-for-day basis for delay caused by a Force Majeure Event, up to a maximum aggregate extension of eighteen (18) months across all Milestones, of which up to twelve (12) months may be attributable to Force Majeure Events generally and up to six (6) months may be attributable to delays in governmental permitting processes. Tenant shall deliver written notice to Landlord of any Force Majeure Event within thirty (30) days after Tenant becomes aware of it, describing the event and its anticipated effect. Failure to give timely notice shall not reduce the extension to which Tenant is entitled, provided Tenant delivers notice within a reasonable time thereafter.

Section 4.4 Environmental and Coastal Extensions. In addition to the extensions set forth in Section 4.3, and without counting against the eighteen (18) month aggregate limitation set forth therein:

(a) each deadline set forth in Section 4.2 shall be extended by the number of days of delay attributable to (i) the review, approval, or issuance by DEEP of a Remedial Action Plan, Soil Management Plan, ELUR modification, variance, or other environmental approval required for the Project, (ii) the performance of the Remediation in accordance with Article 9, or (iii) the discovery during construction of Hazardous Materials or conditions not disclosed in the Phase I or Phase II Environmental Site Assessments, provided Tenant has complied with its obligations under Article 9; and

(b) each deadline set forth in Section 4.2 shall be extended by the number of days of delay attributable to any change in applicable floodplain, coastal resilience, sea level rise, building code, or wetlands regulation, or any revision of the FEMA Flood Insurance Rate Map for the Premises, that requires redesign or modification of the Project.

Section 4.5 Failure to Achieve Milestones. If Tenant fails to achieve Milestone 1 or Milestone 3 (as extended pursuant to Sections 4.3 and 4.4), Landlord’s sole and exclusive remedy (other than the recovery of Rent and other amounts then due, and damages for any other independent Event of Default) shall be the exercise of the reverter right in strict accordance with Article 5. **Failure to achieve Milestone 2 or Milestone 4 (as so extended) shall not constitute an Event of Default or a default of any kind under this Lease, and Landlord shall have no remedy or claim in respect thereof, and no such failure shall constitute a breach of this Lease.**

Section 4.6 Cooperation. Each Party shall cooperate in good faith with the other, and shall execute and deliver such instruments and take such actions as are reasonably necessary, to obtain all governmental approvals required for the Project, including the ELUR modification or interpretation contemplated by Section 9.3, and to cause the satisfaction of the conditions precedent in Section 2.5.

Section 4.7 Approvals; Construction Standards. Tenant shall obtain all building permits, site plan approvals, zoning approvals, coastal and wetlands approvals, floodplain permits, and DEEP approvals required for the Project. Tenant shall cause the Project to be designed and constructed (a) in compliance with applicable law, including the Port Calloway Zoning Regulations for the WRD-3 district, applicable building codes, and the flood-resistant construction requirements applicable in FEMA Flood Zone AE; (b) with a finished floor elevation of no less than fifteen (15) feet NAVD88, providing not less than three (3) feet of freeboard above the BFE; and (c) in compliance with the ELUR. **Landlord shall have no right to approve or disapprove the design, appearance, or construction quality of the Improvements except as expressly provided in Section 4.8 (public open space) and Section 4.9 (affordable housing), and any such approval shall be deemed given if Landlord has not delivered a written objection stating the specific basis for objection within fifteen (15) Business Days after receipt of Tenant's written request.**

Section 4.8 Public Open Space. Tenant shall include in the Project a minimum of eight thousand (8,000) square feet of publicly accessible open space on the waterfront (eastern) side of the Premises, designed, constructed, and maintained by Tenant, and connected to the existing public pedestrian promenade. **The Parties acknowledge and agree that:**

(a) the eight thousand (8,000) square feet requirement is a minimum net usable area of open space and shall be satisfied notwithstanding the approximate area of the fifteen (15)-foot public pedestrian access easement, which the Parties acknowledge may comprise substantially less than 8,000 square feet given the length of the Premises' eastern boundary; accordingly, the open space may extend inland from the easement area to the extent consistent with the approved site plan;

(b) the design and programming of the open space shall be subject to Landlord's reasonable approval in connection with site plan review, which approval shall be deemed given if Landlord has not objected in writing within fifteen (15) Business Days;

(c) Tenant's obligation to maintain the open space shall be satisfied by maintaining it in a clean, safe, and usable condition consistent with the standards applicable to the adjacent public promenade; and

(d) if the City or Landlord elects to assume maintenance of the open space, Tenant shall remain responsible for structural repairs to the Improvements beneath and adjacent to the open space, and Tenant's maintenance obligation shall terminate as of the date of such assumption.

Section 4.9 Affordable Housing. Tenant shall cause not fewer than fifteen percent (15%) of the residential dwelling units in the Project to be designated as affordable housing units available to households earning at or below eighty percent (80%) of area median income as published annually by the United States

Department of Housing and Urban Development for the applicable Port Calloway metropolitan statistical area, for the duration of the Affordable Housing Period (as defined in Section 11.5), in accordance with Section 11.5 and Exhibit K.

Section 4.10 Waterfront Promenade. Tenant acknowledges the fifteen (15)-foot public pedestrian access easement recorded at Volume 395, Page 112 of the Port Calloway Land Records and shall preserve public pedestrian access within the easement area. Tenant shall not construct permanent structures within the easement area, but may install landscaping, paving, benches, lighting, and similar public amenities consistent with the City's waterfront promenade design standards. Tenant shall comply with the maintenance standards applicable to the promenade.

Section 4.11 Bulkhead. The Parties acknowledge that the Bulkhead is a pre-existing waterfront structure that is in fair to poor condition, as described in the Survey and in the Phase II Environmental Site Assessment, and that the cost of rehabilitating or replacing the Bulkhead was expressly excluded from the $2,400,000 environmental remediation cost estimate and is not a part of the Remediation.

(a) **Bulkhead Assessment.** On or before the Lease Commencement Date, Landlord shall deliver to Tenant an independent structural engineering assessment of the Bulkhead, prepared by a Connecticut-licensed professional engineer reasonably acceptable to Tenant, addressing the condition, remaining useful life, code compliance, and scope and estimated cost of rehabilitation or replacement (the **"Bulkhead Assessment"**).

(b) **Landlord Responsibility for Pre-Existing Condition. Landlord shall, at its sole cost and expense (and not as a Remedy of Tenant), be responsible for the rehabilitation or replacement of those portions of the Bulkhead that the Bulkhead Assessment identifies as deficient as a result of conditions existing as of the Lease Commencement Date, including lateral displacement, cracking, deteriorated or missing lagging, corrosion of sheet piling, and erosion of backfill, up to a cost of $4,500,000.** If the Bulkhead Assessment estimates the cost of such rehabilitation or replacement at more than $4,500,000, the Parties shall negotiate in good faith an equitable allocation, and pending resolution Tenant may proceed with the work and receive a rent credit in accordance with Section 4.11(d).

(c) **Tenant Responsibility.** Tenant shall be responsible for the cost of any rehabilitation, replacement, or repair of the Bulkhead required by Tenant's construction means and methods, by changes in applicable law after the Lease Commencement Date, or arising from the condition of the Bulkhead after the Lease Commencement Date (ordinary wear and tear excepted).

(d) **Rent Credit.** If Landlord fails to perform its obligations under Section 4.11(b) and Tenant performs such work, Tenant shall be entitled to a credit against Base Rent, applied in the manner described in Section 9.6, in the amount of the lesser of (i) the actual cost incurred by Tenant and (ii) $4,500,000, together with interest at the rate set forth in Section 6.8 from the date of expenditure.

(e) **Ongoing Obligation.** Following completion of the work described in Sections 4.11(b) and 4.11(c), Tenant shall maintain the Bulkhead in good repair and condition throughout the Term, subject to Casualty and Condemnation.

(f) **No Conflict with ELUR.** All Bulkhead work shall be performed in compliance with the ELUR and any required DEEP approvals.

Section 4.12 Below-Grade Work and Dewatering. The Parties acknowledge that the Phase II Environmental Site Assessment's remediation cost estimates assume that groundwater dewatering and treatment will not be required during excavation. Tenant may, but shall not be obligated to, construct below-grade parking. If Tenant constructs below-grade improvements, any required dewatering, treatment, discharge permitting, and any resulting compliance obligations under the RSRs (including the Pollutant Mobility Criteria and Groundwater Protection Criteria) shall be (a) included in the Tenant Remediation Scope to the extent arising from the conditions existing as of the Lease Commencement Date, and (b) otherwise borne by Tenant. Tenant shall obtain all required DEEP and municipal approvals for dewatering and discharge.

ARTICLE 5 — MILESTONE DEFAULT, REVERTER RIGHT, AND COMPENSATION FOR IMPROVEMENTS

Section 5.1 The Reverter Right. If Tenant fails to achieve Milestone 1 or Milestone 3 (in each case as extended pursuant to Sections 4.3 and 4.4), Landlord may, subject to and only in strict compliance with this Article 5, elect to terminate this Lease and cause the Premises and the Improvements to revert to Landlord (the **"Reverter Right"**). The Reverter Right is subject to each of the following conditions precedent, each of which is a **condition precedent to the effectiveness of any termination under this Article 5** and each of which must be satisfied in full:

(a) **Milestone Failure.** Tenant has failed to achieve Milestone 1 or Milestone 3, as extended;

(b) **Milestone Default Notice.** Landlord has delivered to Tenant and, simultaneously, to each Leasehold Mortgagee a written notice (a **"Milestone Default Notice"**) specifying in reasonable detail the Milestone alleged not to have been achieved and the factual basis for that assertion;

(c) **Tenant Cure Period Expired.** The Milestone Cure Period has expired without Tenant having achieved the applicable Milestone;

(d) **Leasehold Mortgagee Notice and Cure Period Expired.** Each Leasehold Mortgagee has received the Milestone Default Notice simultaneously with Tenant, and the Mortgagee Cure Period applicable to such Leasehold Mortgagee has expired without cure in accordance with Section 5.4;

(e) **Improvement Compensation Determined and Paid.** The Improvement Compensation has been determined in accordance with Section 5.6 and paid in full to Tenant and, to the extent of the Indebtedness, to the Leasehold Mortgagee in accordance with Section 5.5; and

(f) **Mediation.** The mediation requirement of Section 5.9 has been satisfied.

Section 5.2 Milestone Default Notice; Tenant Cure Period. Upon delivery of a Milestone Default Notice, Tenant shall have one hundred eighty (180) days (the **"Milestone Cure Period"**) to achieve the applicable Milestone or otherwise cure the alleged failure. **The Milestone Cure Period is in addition to, and shall not run concurrently with, the extensions available under Sections 4.3 and 4.4.**

Section 5.3 Contents of Milestone Default Notice; Tolling.

(a) Each Milestone Default Notice shall (i) identify the applicable Milestone, (ii) state with reasonable specificity the factual basis for Landlord's assertion that the Milestone has not been achieved, including any documents, inspection results, or third-party reports on which Landlord relies, and (iii) state that Tenant has the Milestone Cure Period and that each Leasehold Mortgagee has the Mortgagee Cure Period. **A Milestone Default Notice that fails to satisfy clause (ii) shall be void and of no effect, and Landlord shall be required to deliver a conforming notice before any further action.**

(b) **Tolling.** The Milestone Cure Period shall be tolled during any period in which Tenant is prevented from achieving the applicable Milestone by a Force Majeure Event, by a delay in obtaining any approval from a Governmental Authority (including DEEP), by any act or omission of Landlord, or by any period during which mediation under Section 5.9 is pending. The Milestone Cure Period shall also be tolled during any period in which Landlord is in uncured default of any of its obligations under Article 9 or Section 4.11 that prevents or delays achievement of the applicable Milestone.

(c) **No Cure Required Where Landlord Caused Delay.** If the failure to achieve a Milestone was caused in whole or in part by any act, omission, or breach of Landlord, its agents, or its contractors, then no Milestone Default shall be deemed to have occurred, and Landlord shall have no right to deliver a Milestone Default Notice in respect of such failure.

Section 5.4 Leasehold Mortgagee Notice and Cure. Landlord shall not deliver a notice of termination, shall not declare this Lease terminated,

and shall not exercise the Reverter Right, unless and until each Leasehold Mortgagee has received the Milestone Default Notice simultaneously with Tenant and has been afforded, and has failed to exercise, the following rights:

(a) **Notice.** Simultaneous delivery of the Milestone Default Notice, and of every other notice of default, notice of termination, and material notice delivered to Tenant under this Lease, to each Leasehold Mortgagee at the address designated by such Leasehold Mortgagee in accordance with Section 17.3.

(b) **Mortgagee Cure Period.** A period of one hundred eighty (180) days following the Leasehold Mortgagee's receipt of the Milestone Default Notice (the **"Mortgagee Cure Period"**) within which the Leasehold Mortgagee may cure the Milestone default. **The Mortgagee Cure Period shall run in addition to, and not concurrently with, the Milestone Cure Period available to Tenant and any extension available under Section 4.3 or 4.4.**

(c) **Manner of Cure.** The Leasehold Mortgagee may cure a Milestone default by any of the following means, in its sole discretion: (i) performing or causing the performance of all work necessary to achieve the applicable Milestone; (ii) paying all sums necessary to achieve the applicable Milestone; (iii) installing a replacement developer, general contractor, or property manager reasonably acceptable to Landlord (which acceptance shall not be unreasonably withheld, conditioned, or delayed, and which shall be deemed given if Landlord has not objected in writing within ten (10) Business Days after receiving notice of the proposed replacement); or (iv) exercising its rights under Section 17.5.

(d) **Landlord Cooperation.** Landlord shall accept performance by a Leasehold Mortgagee as if performed by Tenant and shall execute all documents reasonably necessary to permit such cure, including any assignment or assumption of development rights, permits, and contracts.

(e) **No Termination Without Exhaustion.** The expiration of the Mortgagee Cure Period without cure is a **hard prerequisite** to any termination of this Lease or exercise of the Reverter Right, and any purported termination effected before such expiration shall be void and of no force or effect.

(f) **Consent.** If the Leasehold Mortgagee has delivered written notice to Landlord that it intends to exercise its rights under this Section 5.4, Landlord shall not exercise the Reverter Right without the prior written consent of such Leasehold Mortgagee.

Section 5.5 Compensation for Improvements. Upon any termination of this Lease pursuant to this Article 5 (a "Reverter Termination"), Tenant shall be entitled to receive, and Landlord shall pay, compensation for the

Improvements (the “Improvement Compensation”) determined as follows:

(a) **Tenant’s Election.** Tenant may elect, by written notice delivered to Landlord within thirty (30) days after the determination of the Appraised Value, to receive either:

(i) the **Appraised Value** of the Improvements as of the effective date of the Reverter Termination, determined in accordance with Section 5.6; or

(ii) an amount equal to Tenant’s **actual, unreimbursed Hard Costs and Soft Costs** of the Improvements incurred as of the effective date of the Reverter Termination, net of (A) any insurance proceeds received by Tenant on account of the Improvements and not applied to restoration, and (B) the amount of Landlord’s actual, documented damages (excluding consequential, indirect, punitive, and speculative damages, and excluding the value of the reversion or of any lost rent or lost land value) resulting from Tenant’s failure to achieve the applicable Milestone.

(b) **Floor.** In no event shall the Improvement Compensation be less than the outstanding principal balance of, and accrued interest and other amounts owing under, the Indebtedness secured by the Leasehold Mortgage as of the effective date of the Reverter Termination, up to the Appraised Value of the Improvements.

(c) **Payee.** Landlord shall pay the Improvement Compensation to Tenant and, at the election of the Leasehold Mortgagee (or as required under the SNDA), shall pay all or any portion thereof directly to the Leasehold Mortgagee in satisfaction of the Indebtedness. Payment to the Leasehold Mortgagee shall discharge Landlord’s obligation to Tenant to the extent of such payment.

Section 5.6 Determination of Appraised Value. The Appraised Value of the Improvements shall be determined as follows:

(a) Within thirty (30) days after the delivery of a Milestone Default Notice, Landlord and Tenant shall jointly select an independent MAI-designated appraiser licensed in Connecticut and having not less than ten (10) years’ experience appraising mixed-use waterfront properties in the Northeast (the **“Appraiser”**), who shall determine the fair market value of the Improvements as of the effective date of the proposed Reverter Termination, determined as the value attributable to the Improvements alone, excluding the value of the land and excluding any value attributable to the fact that the land is owned by Landlord, and assuming a willing buyer and a willing seller and a reasonable marketing period.

(b) The Appraiser’s determination shall be delivered to both Parties within forty-five (45) days after engagement, shall be in writing and supported by an explanation of methodology, and shall be final and binding on the Parties absent manifest error or fraud.

(c) If the Parties cannot agree on the Appraiser within such thirty (30) day period, each Party shall select an appraiser meeting the foregoing qualifications, each such appraiser shall determine the Appraised Value within forty-five (45) days, and if the two determinations differ by more than ten percent (10%) of the higher determination, the two appraisers shall jointly select a third appraiser meeting the same qualifications whose determination within thirty (30) days shall be final and binding and whose determination shall be the Appraised Value. If the two determinations differ by ten percent (10%) or less, the Appraised Value shall be the average of the two.

(d) The fees and expenses of the Appraiser shall be borne by Landlord if Tenant elects the option in Section 5.5(a)(i), and shall be shared equally if Tenant elects the option in Section 5.5(a)(ii).

Section 5.7 Effect of Non-Payment; No Forfeiture. No Reverter Termination shall be effective, and this Lease shall not terminate, unless and until Landlord has paid the Improvement Compensation in full in immediately available funds in accordance with Section 5.5. If Landlord fails to pay the Improvement Compensation within sixty (60) days after its determination (or if the amount is not disputed in good faith, within sixty (60) days after the delivery of Tenant's election), then:

(a) the Milestone Default giving rise to the Milestone Default Notice shall be deemed conclusively waived and of no further effect;

(b) this Lease shall continue in full force and effect as if no Milestone Default Notice had been delivered;

(c) Landlord shall have no further right to deliver a Milestone Default Notice with respect to the same Milestone failure; and

(d) Tenant shall have no obligation to vacate or surrender the Premises.

Section 5.8 Improvements Not Forfeited; Security Deposit. Tenant shall not forfeit the Improvements or any interest therein upon any termination of this Lease, whether under this Article 5 or otherwise, except upon the expiration of the Term in accordance with Article 20. Upon a Reverter Termination, Landlord may draw upon the Security Deposit only to the extent of Landlord's actual, documented damages (if any) and shall return the balance to Tenant within thirty (30) days after the draw. **In no event shall Landlord recover, in respect of a single Milestone failure, both (i) the full amount of the Security Deposit and (ii) the Improvements without payment of the Improvement Compensation, and in no event shall Landlord's aggregate recovery in respect of a Milestone failure exceed its actual, documented damages plus the value of the reversion of the land.**

Section 5.9 Mediation. Before exercising the Reverter Right, Landlord shall submit the dispute to non-binding mediation in accordance with Section 23.2. The mediation shall be commenced within thirty (30) days after the expiration of

the Mortgagee Cure Period and shall be concluded within sixty (60) days after commencement. **The Reverter Right may not be exercised while mediation is pending, and Tenant's obligations under this Lease (including its obligation to continue developing the Project) shall continue during the mediation.**

Section 5.10 Exclusive Remedies for Milestone Failure. Landlord's remedies for a failure to achieve Milestone 1 or Milestone 3 are limited to (a) the Reverter Right, exercised in strict compliance with this Article 5, and (b) an action for specific performance of Tenant's development obligations. **Landlord shall have no right to (i) terminate this Lease except pursuant to Article 5, (ii) take title to the Improvements without payment of the Improvement Compensation, (iii) accelerate any Rent, (iv) recover liquidated or punitive damages, or (v) recover consequential or indirect damages in respect of a Milestone failure.**

Section 5.11 Nature of the Improvement Compensation; No Penalty. The Parties acknowledge and agree that: (a) the Improvements will represent an investment by Tenant of several hundred million dollars; (b) the Improvement Compensation is intended to compensate Tenant for the value of Improvements that will become Landlord's property, and is not a liquidated damages provision, a penalty, or a forfeiture; (c) the amount payable under Section 5.5 is intended to approximate the value of what Tenant loses and what Landlord receives, and is not grossly disproportionate to the harm, if any, suffered by Landlord; and (d) if any provision of this Article 5 is determined to be unenforceable as a penalty or forfeiture, the remaining provisions shall be enforced to the maximum extent permitted by law, and Landlord shall in any event pay Tenant the fair value of the Improvements as a condition to receiving title to them.

Section 5.12 No Waiver by Negotiation. Neither Party's participation in mediation, nor any delay by Landlord in delivering a Milestone Default Notice, nor Landlord's acceptance of Rent after a Milestone failure, shall constitute a waiver of the Reverter Right, provided that no Reverter Termination shall be effective except in compliance with this Article 5.

ARTICLE 6 — BASE RENT

Section 6.1 Covenant to Pay Base Rent. Commencing on the Rent Commencement Date, Tenant shall pay to Landlord annual base rent (the **"Base Rent"**) in accordance with this Article 6, in equal monthly installments, in advance, on the first day of each calendar month, without demand, and without setoff, counterclaim, abatement, suspension, deduction, or defense except as expressly provided in this Lease.

Section 6.2 Initial Base Rent. The initial annual Base Rent shall be **Two Million Eight Hundred Fifty Thousand Dollars ($2,850,000)**, payable in equal monthly installments of **Two Hundred Thirty-Seven Thousand Five Hundred Dollars ($237,500)**. The Parties acknowledge that the initial annual

Base Rent equates to approximately $20.45 per square foot of Premises area (based on 139,392 square feet).

Section 6.3 Rent Commencement Date. The **"Rent Commencement Date"** means the earlier of:

(a) the date that is thirty-six (36) months after the Lease Commencement Date (which, based on the anticipated Lease Commencement Date of October 1, 2025, would be October 1, 2028); or

(b) the date on which a temporary or permanent certificate of occupancy is first issued for at least one hundred (100) residential dwelling units within the Residential Tower.

Percentage Rent shall not be payable for any period before the Rent Commencement Date. From the Lease Commencement Date until the Rent Commencement Date, Tenant shall have no obligation to pay Base Rent or Percentage Rent, but shall be responsible for Taxes, insurance premiums, utilities, and other carrying costs of the Premises as provided in this Lease (subject to Article 8.7).

Section 6.4 Fixed Escalations. Base Rent for the following Rent Years shall be as set forth below:

Rent Years	Annual Base Rent	Monthly Installment
1 – 5	$2,850,000	$237,500
6 – 10	$3,224,500	$268,708.33
11 – 15	$3,648,200	$304,016.67

Section 6.5 CPI Resets. Effective on each Reset Date, Base Rent shall be reset to the greater of:

(a) the annual Base Rent in effect immediately prior to such Reset Date, multiplied by 1.025 raised to the tenth power (that is, the annual compounding of two and one-half percent (2.5%) over the ten (10) Rent Years immediately preceding such Reset Date); or

(b) the annual Base Rent in effect immediately prior to such Reset Date, multiplied by a fraction, the numerator of which is the CPI for the calendar month that is three (3) months prior to such Reset Date and the denominator of which is the CPI for the calendar month that is three (3) months prior to the immediately preceding Reset Date (or, for the first Reset Date, the CPI for the calendar month that is three (3) months prior to the Rent Commencement Date); **provided, however, that the increase determined under this clause (b) shall not exceed four percent (4.0%) per annum, compounded over the applicable ten (10) Rent Year period.**

Base Rent shall not be reduced below the amount in effect immediately prior to any Reset Date, and shall not be reduced below the initial annual Base Rent of $2,850,000.

Section 6.6 CPI Mechanics.

(a) The CPI for the calendar month that is three (3) months prior to the Rent Commencement Date (the **"Base CPI"**) shall be stated in a schedule delivered by Tenant to Landlord within thirty (30) days after the Rent Commencement Date and countersigned by Landlord (whose countersignature shall not be unreasonably withheld).

(b) All CPI-based calculations shall be rounded to the nearest cent and shall be based on the CPI as published and not seasonally adjusted.

(c) If the CPI is rebased (that is, the index is re-referenced to a new base year), the Parties shall apply the conversion factor published by the Bureau of Labor Statistics so that the comparison reflects equivalent index levels.

(d) If the CPI ceases to be published and no successor index is published by the Bureau of Labor Statistics, the Parties shall select a comparable index of consumer prices for the Northeast Region published by a recognized governmental or financial authority; if the Parties cannot agree within thirty (30) days, the selection shall be made by the Appraiser appointed pursuant to Section 5.6(a), whose determination shall be final and binding.

Section 6.7 Net Lease; Limited Offsets. This Lease is a net lease, except as expressly provided in this Lease. Notwithstanding Section 6.1, Tenant shall be entitled to offset against Base Rent, and to deduct from any installment of Base Rent, each of the following amounts (each an **"Express Offset"**):

(a) the Remediation Credit, as provided in Section 9.6;

(b) any credit due under Section 4.11(d) (Bulkhead);

(c) any amount due from Landlord to Tenant under Section 8.7 (Tax Abatement failure), Section 19.5 (Landlord default), or Section 15.2 (Casualty abatement);

(d) any overpayment of Percentage Rent determined under Section 7.8;

(e) any amount expended by Tenant to cure a Landlord default pursuant to Section 19.5, together with interest at the rate set forth in Section 6.8; and

(f) any amount payable by Landlord to Tenant under any indemnity in this Lease.

Tenant shall give Landlord not less than ten (10) Business Days' prior written notice of any Express Offset (except in the case of an emergency), stating the amount and the basis, and Landlord may dispute the offset in accordance with Article 23. Exercise of an Express Offset shall not constitute an Event of Default.

Section 6.8 Late Payment. Any installment of Base Rent or other amount payable by Tenant that is not paid within five (5) Business Days after its due date shall bear interest from the due date until paid at the lesser of (a) the rate

of eight percent (8%) per annum and (b) the maximum rate permitted by applicable law. No late charge, penalty, or default interest in excess of such rate shall be payable by Tenant. **Any amount payable by Landlord to Tenant under this Lease that is not paid when due shall bear interest at the same rate.**

Section 6.9 Application of Payments. Landlord shall apply each payment of Base Rent to the Base Rent then most recently due. Tenant may designate the manner in which any payment is applied where more than one amount is outstanding.

Section 6.10 Records. Tenant shall deliver to Landlord, within thirty (30) days after the Rent Commencement Date and within thirty (30) days after each Reset Date, a written statement setting forth the Base Rent then in effect and the calculation thereof. Any computational error in a statement shall be corrected upon written notice, and any overpayment shall be refunded or credited to Tenant within thirty (30) days.

ARTICLE 7 — PERCENTAGE RENT

Section 7.1 Obligation to Pay Percentage Rent. Beginning with Rent Year 6 and continuing for the remainder of the Term, Tenant shall pay to Landlord additional rent (**"Percentage Rent"**) equal to two percent (2.0%) of the amount by which the Gross Revenues of the Project for such Rent Year exceed the Breakpoint for such Rent Year. Percentage Rent shall be paid in accordance with Section 7.7.

Section 7.2 Definition of Gross Revenues. "Gross Revenues" means the total gross revenues actually received by Tenant and its Affiliates from the operation of the Project during the applicable Rent Year, determined on a cash basis, including:

(a) residential rental income, including base rent, amenity fees, pet fees, parking income attributable to residents, and other residential charges;

(b) office rental income, including base rent and additional rent;

(c) retail rental income, including base rent, additional rent, and percentage rent received from retail subtenants;

(d) parking revenues from the parking facilities within the Project;

(e) income from antenna, rooftop, signage, telecommunications, and similar licenses; and

(f) income from vending, laundry, package lockers, co-working, short-term rental, event, and other ancillary operations conducted at the Premises.

Section 7.3 Exclusions from Gross Revenues. Gross Revenues shall **exclude**, and Tenant shall have no obligation to pay Percentage Rent with respect to, each of the following:

(a) security deposits, except to the extent applied to rent and actually received as revenue;

(b) utility reimbursements and pass-throughs, including recoveries of electricity, gas, water, sewer, trash, and telecommunications charges;

(c) common area maintenance, real estate tax, insurance, and operating expense pass-throughs and recoveries from subtenants, including any administrative or management fee imposed on such pass-throughs;

(d) proceeds of insurance, including business interruption proceeds and proceeds received on account of a Casualty;

(e) condemnation awards;

(f) capital contributions, equity contributions, loans, and other financing proceeds;

(g) proceeds of the sale or other disposition of the Project or any portion thereof or interest therein, and proceeds of any sale of Tenant’s leasehold estate;

(h) interest income and investment earnings on reserves and deposits;

(i) lease termination payments, buy-out payments, and settlement proceeds received from subtenants;

(j) amounts received from any warranty, guaranty, indemnity, or claim;

(k) sales, use, occupancy, hotel, and amusement taxes, and any other taxes or governmental charges collected from subtenants and remitted to a taxing authority;

(l) bad debt recoveries to the extent previously written off and excluded from Gross Revenues;

(m) refunds, rebates, and credits (other than refunds of amounts previously included in Gross Revenues);

(n) employee, guest, and resident concession and discount amounts to the extent not collected;

(o) amounts received from the sale of affordable housing tax credits, low-income housing tax credits, or any similar tax incentive;

(p) grants, subsidies, and incentive payments received from any Governmental Authority; and

(q) any amounts that are not true revenue to Tenant, including amounts collected on behalf of third parties.

In addition, Gross Revenues shall be determined without including any revenue from a business or activity that is not conducted at the Premises. Tenant may satisfy its obligations under this Article 7 by delivering a statement of Gross Revenues prepared on the same basis as the Project’s audited or reviewed annual financial statements, consistently applied.

Section 7.4 Deductions from Gross Revenues. In calculating Gross Revenues, Tenant may deduct (a) amounts actually written off as uncollectible during the Rent Year in accordance with Tenant's customary accounting practices, and (b) the amount of any rent concession, free rent, or abatement actually granted to a subtenant.

Section 7.5 Indexation of the Breakpoint. The Breakpoint shall be adjusted on each Reset Date by multiplying the Breakpoint in effect immediately prior to such Reset Date by the same fraction used to calculate the CPI-based adjustment to Base Rent under Section 6.5(b) for such Reset Date. **In no event shall the Breakpoint be reduced below $28,500,000.** The Breakpoint as so adjusted shall apply to the Rent Year beginning on the applicable Reset Date and to each Rent Year thereafter until the next Reset Date. Tenant shall deliver to Landlord, together with the statement required by Section 6.10, a statement setting forth the Breakpoint as adjusted.

The Parties acknowledge that the purpose of this Section 7.5 is to preserve over the full ninety-nine (99) year Term the economic relationship between the Breakpoint and project revenues that the Parties negotiated in 2025, so that Percentage Rent operates as a participation in the Project's real growth rather than as a levy on inflationary revenue increases.

Section 7.6 Partial Rent Years. If the Rent Commencement Date does not fall on the first day of a calendar month, or if a Rent Year is otherwise less than a full twelve (12) month period, Percentage Rent for such period shall be computed by annualizing Gross Revenues and the Breakpoint for such period and then prorating the resulting amount by the ratio of the number of days in such period to three hundred sixty-five (365).

Section 7.7 Calculation, Statement, and Payment. Percentage Rent for each Rent Year shall be calculated annually and shall be due and payable within ninety (90) days after the end of such Rent Year. Each payment shall be accompanied by a certified statement of Gross Revenues for the applicable Rent Year, prepared in accordance with Section 7.2 on a basis consistent with the Project's annual financial statements, and signed by an authorized officer of Tenant. **If Tenant fails to deliver the statement and pay any Percentage Rent when due and such failure continues for thirty (30) days after written notice from Landlord, the unpaid amount shall bear interest in accordance with Section 6.8, but such failure shall not of itself constitute an Event of Default until such thirty (30) day period has expired.**

Section 7.8 Audit. Landlord shall have the right, exercisable not more than once in any Rent Year and not more than once with respect to any Rent Year, to audit Tenant's books and records relating to Gross Revenues for the two (2) Rent Years most recently ended, upon not less than thirty (30) days' prior written notice. Any such audit shall be conducted by an independent certified public accountant reasonably acceptable to Tenant, during normal business

hours, at Tenant's principal place of business or remotely, and in a manner that does not unreasonably interfere with the operation of the Project. **The following shall apply to any audit:**

(a) **Cost.** If the audit discloses an underpayment of Percentage Rent of five percent (5%) or more for the audited Rent Year, Tenant shall reimburse Landlord for the reasonable out-of-pocket cost of the audit. If the audit discloses an underpayment of less than five percent (5%), or discloses an overpayment, Landlord shall bear the full cost of the audit.

(b) **Payment or Credit.** Any underpayment disclosed by an audit shall be paid by Tenant within thirty (30) days after delivery of the auditor's report, together with interest at the rate set forth in Section 6.8 from the original due date. Any overpayment shall be credited against the next installment of Base Rent or, if no further Rent is payable, refunded within thirty (30) days.

(c) **Records.** Tenant shall maintain complete and accurate books and records relating to Gross Revenues for not less than three (3) years following the end of each Rent Year, and Landlord's audit right with respect to any Rent Year shall expire twenty-four (24) months after the delivery of the statement for such Rent Year.

(d) **Confidentiality.** Landlord shall, and shall cause its auditor to, keep all information obtained in any audit confidential and shall not disclose it except to its Board, its attorneys, its auditors, or as required by the Connecticut Freedom of Information Act or other applicable law. Landlord shall assert all available exemptions, including Conn. Gen. Stat. § 1-210(b)(5) (trade secrets and commercial or financial information), before disclosing any such information.

(e) **No Landlord Audit of Subtenant Records.** Landlord's audit right extends only to Tenant's records, and Landlord shall have no right to audit Tenant's subtenants directly.

Section 7.9 No Percentage Rent Below Breakpoint. No Percentage Rent shall be payable for any Rent Year in which Gross Revenues do not exceed the Breakpoint for such Rent Year. Percentage Rent shall not be cumulative, and a shortfall in one Rent Year shall not be carried forward.

Section 7.10 Relationship to Base Rent. Percentage Rent is additional rent and is independent of Base Rent. Tenant shall not be entitled to credit Base Rent against Percentage Rent, or Percentage Rent against Base Rent, except pursuant to an Express Offset.

ARTICLE 8 — TAXES, ASSESSMENTS, AND TAX ABATEMENT

Section 8.1 Triple-Net Structure. This Lease is intended to be a triple-net ground lease. Subject to Sections 8.2 and 8.6 through 8.8, Tenant shall pay all Taxes levied or assessed against the Premises and the Improvements during the Term.

Section 8.2 "Taxes" Defined. **"Taxes"** means all real property taxes, ad valorem taxes, special assessments, benefit assessments, betterment assessments, sewer and water charges and assessments, and other governmental impositions of every kind levied or assessed upon or with respect to the Premises or the Improvements, together with all costs (including reasonable attorneys' and consultants' fees) reasonably incurred in contesting the same. **"Taxes" shall exclude:**

(a) franchise, income, inheritance, estate, gift, and transfer taxes of Landlord or Tenant;

(b) any tax, assessment, or charge imposed on Landlord's fee interest measured by Landlord's net income or receipts, other than real property taxes on the Premises;

(c) any tax or charge resulting from Landlord's own act, negligence, or default, or attributable to a period before the Lease Commencement Date or after the expiration of the Term;

(d) any interest or penalty resulting from Landlord's failure to pay or forward a tax bill or assessment timely received by Landlord;

(e) any special assessment for public improvements levied against the Premises that is payable in installments extending beyond the Term, except to the extent attributable to the period during the Term; and

(f) Tenant's personal property taxes, which shall be Tenant's obligation separately.

Section 8.3 Payment; Contest. Tenant shall pay Taxes before delinquency. **Tenant shall have the right, at its sole cost and expense and in its own name or in Landlord's name (and Landlord shall cooperate and join in any such proceeding if required), to contest by appropriate legal proceeding the validity or amount of any Taxes.** Landlord shall, within ten (10) Business Days after receipt, deliver to Tenant copies of all tax bills, assessment notices, and notices of valuation received by Landlord. Tenant may defer payment of any contested Tax, provided that Tenant (i) complies with applicable law and any bonding or escrow requirement so that the Premises is not subject to a tax sale or lien enforcement, and (ii) indemnifies Landlord. Any refund received on a contested Tax shall belong to Tenant to the extent Tenant paid the Tax.

Section 8.4 Proration. Taxes for the fiscal year in which the Lease Commencement Date occurs shall be prorated as of the Lease Commencement Date. Taxes for the fiscal year in which the Term ends shall be prorated as of the expiration date based on the most recent ascertainable tax bill. Because Tenant is responsible for Taxes for the entire Term (except as provided in Section 8.7), the Parties anticipate no proration other than at the beginning and end of the Term.

Section 8.5 Landlord Covenants Regarding the Tax Abatement. Landlord shall, at its sole cost and expense: (a) use its best efforts to obtain all

approvals and authorizations of the City, including any required action of the Port Calloway Board of Finance or the Connecticut Office of Policy and Management, necessary to implement the tax abatement program described in Section 8.6; (b) cause the Tax Abatement Agreement in the form attached as Exhibit L to be executed and delivered by the City and to be in full force and effect no later than the Rent Commencement Date; (c) take all actions necessary to maintain the tax abatement program in effect throughout the Abatement Period; and (d) timely notify Tenant of, and cooperate with Tenant in responding to, any proposed modification, suspension, or revocation of the tax abatement program.

Section 8.6 Tax Abatement Program.

(a) **Applicable Percentage; Abatement Period.** For each Rent Year during the fifteen (15) year period commencing on the Rent Commencement Date (the **"Abatement Period"**), Tenant's obligation for Taxes on the Premises and the Improvements shall be calculated on the following percentage of the actual assessed value of the Premises and the Improvements (the **"Applicable Percentage"**):

Rent Year(s) of Abatement Period	Applicable Percentage
1 – 5	25%
6 – 10	50%
11 – 15	75%
16 and thereafter	100%

(b) **Commencement of Abatement Period. The Abatement Period shall commence on the Rent Commencement Date and not on the Lease Commencement Date.** The Parties agree that the tax abatement program was provided to make the Project's operating economics viable during lease-up and stabilization, and that a construction period of up to thirty-six (36) months precedes the Rent Commencement Date.

(c) **Calculation During Construction Period.** From the Lease Commencement Date through the day immediately preceding the Rent Commencement Date, Tenant's obligation for Taxes shall be calculated on one hundred percent (100%) of the actual assessed value of the Premises and the Improvements as assessed from time to time (which the Parties anticipate, prior to completion of the Improvements, to reflect the land value and any partially completed improvements assessed by the City).

(d) **Use of Actual Assessments.** Taxes during and after the Abatement Period shall be calculated by multiplying the actual assessed value of the Premises and the Improvements, as determined by the Port Calloway Tax Assessor, by the actual mill rate then in effect, and then by the

Applicable Percentage. **The Parties acknowledge that the projections in the Term Sheet (post-development assessed value of $178,000,000 and mill rate of 34.75 mills, yielding $6,185,500 per annum at full assessment) were estimates only, that the actual assessed value and mill rate will vary over the Term, and that Taxes shall be calculated on the actual assessed value and actual mill rate.**

(e) **Estimated Savings.** For illustration only, the Parties acknowledge that the Term Sheet estimated annual Taxes during the first phase of the abatement at $1,546,375, during the second phase at $3,092,750, during the third phase at $4,639,125, and at full assessment at $6,185,500, in each case based on a projected assessed value of $178,000,000 and a mill rate of 34.75 mills.

Section 8.7 Failure to Implement or Maintain Abatement. If, for any reason other than Tenant's own act or omission, the tax abatement program described in Section 8.6 is not implemented as of the Rent Commencement Date, or ceases to be available at any time during the Abatement Period, then:

(a) **Cap on Tenant's Tax Obligation.** Tenant's obligation for Taxes shall in no event exceed the amount that would have been payable had the tax abatement program been in effect in accordance with Section 8.6;

(b) **Landlord Payment or Offset.** Landlord shall pay to Tenant, within thirty (30) days after written demand, the amount of any Taxes paid by Tenant in excess of the amount determined under clause (a), and Tenant may offset any such amount against Base Rent as an Express Offset;

(c) **Equitable Adjustment of Other Economic Terms.** If the deficiency cannot be cured by Landlord's payment, the Parties shall negotiate in good faith an equitable adjustment to the economic terms of this Lease sufficient to restore the economics the Parties intended, and if they cannot agree within sixty (60) days, the matter shall be resolved in accordance with Article 23; and

(d) **No Event of Default.** Tenant's payment of Taxes in the amount capped by clause (a) shall not constitute an Event of Default, non-payment, or breach of this Lease, notwithstanding any provision of this Lease to the contrary.

Section 8.8 Change in Tax Regime. If any Governmental Authority imposes a new or additional tax, assessment, charge, or fee on the Premises, the Improvements, or the leasehold estate that is not a Tax as defined in Section 8.2 during the Term, Tenant shall pay the same (subject to Article 9.2; but Tenant's obligation under this Section 8.8 shall be subject to the following):

(a) Tenant shall have no obligation to pay any tax that is imposed on Landlord's ownership of the fee interest as distinguished from the occupancy or use of the Premises;

(b) If a payment in lieu of taxes (PILOT) arrangement, revenue-sharing arrangement, or similar program replaces or supersedes the tax abatement program or the real property tax regime, the Parties shall negotiate in good faith to preserve Tenant's economic position, and Tenant's obligation shall not exceed the amount Tenant would have paid under Section 8.6; and

(c) Tenant shall have the right, at its cost, to contest any such new imposition in accordance with Section 8.3.

Section 8.9 Landlord's Tax Obligations; Records. Landlord shall promptly deliver to Tenant all tax bills, notices of assessment, and valuation notices received by Landlord and shall, upon Tenant's request, provide Tenant with copies of Landlord's records relating to the assessment of the Premises. Landlord shall not contest or appeal any assessed valuation of the Premises without Tenant's prior written consent (which shall not be unreasonably withheld), and Tenant shall have the right to conduct and control any such appeal.

Section 8.10 Special Assessments. If any special assessment is levied against the Premises, Tenant may elect to pay it in installments over the longest period permitted and shall be responsible only for installments (including interest) attributable to the period during the Term. At the expiration of the Term, Tenant shall have no obligation with respect to installments not then due.

ARTICLE 9 — ENVIRONMENTAL MATTERS

Section 9.1 Landlord's Environmental Representations and Warranties. Landlord represents and warrants to Tenant as of the Effective Date and as of the Lease Commencement Date that, except as disclosed in the Phase I Environmental Site Assessment dated March 15, 2025 (Report No. HEC-2025-0318), the Phase II Environmental Site Assessment dated May 2, 2025 (Report No. HEC-2025-0412), the ELUR, and the reports referenced in the title commitment:

(a) Landlord has delivered to Tenant true and complete copies of all environmental reports, assessments, sampling data, regulatory correspondence, and DEEP files in Landlord's possession or control relating to the Premises;

(b) there is no Release of Hazardous Materials at, on, under, or migrating from the Premises other than the contamination described in the Phase II Environmental Site Assessment as Area 1 (approximately 4,200 square feet in the northwest corner) and Area 2 (approximately 1,600 square feet in the former dry dock area);

(c) Landlord has received no written notice from any Governmental Authority of any violation of Environmental Laws, any Release, or any enforcement action relating to the Premises that remains unresolved;

(d) the ELUR has not been violated by Landlord and remains in full force and effect;

(e) Landlord has made all filings, and given all notices, required under Environmental Laws with respect to the conditions existing as of the Lease Commencement Date, including all filings relating to the removal of the underground storage tanks formerly located in the northwest corner of the Premises; and

(f) the estimate of $2,400,000 for the Remediation (comprising $1,850,000 for Area 1 and $550,000 for Area 2) was prepared by Halcyon Environmental Consultants Inc. as an opinion-level estimate on the basis described in the Phase II Environmental Site Assessment, and Landlord is not aware of any condition at the Premises that would cause the actual cost of the Tenant Remediation Scope to exceed such estimate.

Section 9.2 Landlord’s Environmental Covenants. Landlord covenants that it shall: (a) not cause or permit any Release of Hazardous Materials at the Premises; (b) maintain the ELUR in full force and effect and take no action to modify or release it in a manner that adversely affects the Project; (c) perform all obligations of the “owner” under the ELUR that are not allocated to Tenant under this Lease; (d) cooperate fully, at Landlord’s cost as to matters arising from pre-existing conditions, in obtaining any ELUR modification, variance, interpretation, or release from DEEP that is necessary for the Project; and (e) discharge any lien filed against the Premises under Conn. Gen. Stat. § 22a-119a or any comparable Environmental Law arising from conditions existing as of the Lease Commencement Date, or from any act of Landlord.

Section 9.3 ELUR Compliance; Ground-Floor Use.

(a) The Parties acknowledge that the ELUR prohibits residential use on the ground floor of any structure on the Premises, defining “residential use” as habitable space at or below finished grade elevation intended for residential dwelling, sleeping, cooking, or eating, and that the ELUR does not expressly address non-habitable ancillary spaces serving a residential building, such as lobbies, mail rooms, fitness centers, package rooms, resident lounges, and leasing offices. **The Parties further acknowledge that the proposed Project contemplates a ground-floor residential lobby and amenity spaces, and that the Phase II Environmental Site Assessment recommends that Tenant obtain a formal interpretation or variance from DEEP clarifying the permissibility of such spaces.**

(b) **Landlord Obligation. Landlord shall, at its sole cost and expense and as a condition to the Lease Commencement Date, obtain from DEEP a written interpretation, variance, or modification of the ELUR confirming that ground-floor residential lobby, amenity, leasing, and management spaces (as distinct from dwelling units) are permitted under the ELUR, or, if such confirmation is not**

obtained, an amendment to the ELUR permitting such uses. Landlord shall diligently pursue such confirmation and shall keep Tenant reasonably informed. Tenant shall cooperate with Landlord's efforts and shall furnish such design and technical information as Landlord reasonably requires.

(c) **Interim Protection.** Pending receipt of the confirmation described in Section 9.3(b), Tenant may proceed with the Project using a ground-floor program that Tenant reasonably determines to be consistent with the ELUR (including by locating dwelling units on floors 2 and above and limiting ground-floor uses to retail, commercial, mechanical, parking, and other clearly non-habitable functions), and no such design decision shall constitute a breach of this Lease.

(d) **DEEP Enforcement.** If DEEP asserts that any portion of the Project as designed violates the ELUR, and such assertion results from the ELUR's ambiguity rather than from Tenant's deviation from the approved plans or Tenant's failure to comply with Section 9.3, then (i) Landlord shall bear the cost of any required design modification, abatement, penalty, or remedial action, and (ii) the applicable Development Milestone deadlines shall be extended by the period of delay in accordance with Section 4.4(a). Landlord shall indemnify Tenant for any fine, penalty, or cost arising from such assertion, except to the extent caused by Tenant's negligence or willful misconduct.

(e) **Affordable Units Placement.** Tenant shall locate all affordable housing units on floors above the ground floor, consistent with the ELUR and the recommendations in the Phase II Environmental Site Assessment, and the Affordable Housing Regulatory Agreement shall so provide.

Section 9.4 Environmental Remediation — Allocation of Responsibility.

(a) **Tenant Remediation Scope.** Tenant shall perform, at its cost subject to the Remediation Credit, the investigation, excavation, off-site disposal, backfill, confirmation sampling, and reporting necessary to address the contamination identified in the Phase II Environmental Site Assessment within Area 1 (approximately 4,200 square feet) and Area 2 (approximately 1,600 square feet), substantially in accordance with the scope and budget described in **Exhibit H** and the Phase II Environmental Site Assessment, all in compliance with the RSRs, the ELUR, and a DEEP-approved Remedial Action Plan and Soil Management Plan (collectively, the **"Tenant Remediation Scope"**).

(b) **Landlord Responsibility. Landlord shall be solely responsible, at its sole cost and expense and without reimbursement from Tenant, for: (i) all environmental conditions at the Premises existing as of the Lease Commencement Date that are not within the Tenant Remediation Scope; (ii) all costs of investigating, remediating, monitoring, and closing out the former underground storage tank**

locations and any DEEP Leaking Underground Storage Tank file or "closure pending/incomplete" status; (iii) all costs of obtaining any ELUR modification or release required by Section 9.3; (iv) all costs of addressing any Release that migrates off-site or any off-site impact from pre-existing conditions; (v) all costs of addressing any contamination discovered during construction outside the areas delineated in the Phase II Environmental Site Assessment; and (vi) all costs arising from any third-party claim, natural resource damage claim, or governmental enforcement action relating to conditions existing as of the Lease Commencement Date.

(c) **Cap on Tenant's Environmental Liability. Tenant's aggregate liability for the cost of the Tenant Remediation Scope shall not exceed Six Hundred Thousand Dollars ($600,000). Any actual cost of the Tenant Remediation Scope in excess of $2,400,000 in the aggregate shall be borne by Landlord.** If the aggregate cost of the Tenant Remediation Scope is less than $2,400,000, the Remediation Credit shall not be reduced or adjusted, and Tenant shall retain the benefit of the Remediation Credit in the full amount of $1,800,000.

(d) **Landlord Indemnity for Pre-Existing Conditions. Landlord shall indemnify, defend, and hold harmless Tenant, its members, its Leasehold Mortgagee, and their respective officers, directors, employees, agents, and affiliates from and against all claims, liabilities, losses, damages, penalties, fines, costs, and expenses (including reasonable attorneys' and consultants' fees, and including response costs and natural resource damages) arising out of or relating to (i) any Release or condition of Hazardous Materials at, on, under, or migrating from the Premises existing as of the Lease Commencement Date, (ii) Landlord's breach of Section 9.1 or 9.2, (iii) any off-site migration of pre-existing contamination, and (iv) any claim by a third party relating to pre-existing conditions, in each case regardless of whether the claim is asserted during or after the Term.**

(e) **Tenant Indemnity.** Tenant shall indemnify, defend, and hold harmless Landlord from and against all claims, liabilities, losses, damages, penalties, fines, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to any Release of Hazardous Materials at the Premises caused by Tenant's acts or omissions after the Lease Commencement Date, other than a Release of pre-existing contamination caused by Tenant's properly conducted construction activities in compliance with the approved Remedial Action Plan and Soil Management Plan, and other than matters for which Landlord is responsible under Section 9.4(b).

(f) **Survival.** The indemnities in Sections 9.4(d) and 9.4(e) shall survive the expiration or earlier termination of this Lease.

Section 9.5 Remediation Credit.

(a) **Amount.** Landlord shall provide to Tenant a credit against Base Rent in the aggregate amount of **One Million Eight Hundred Thousand Dollars ($1,800,000)** (the **"Remediation Credit"**), without interest, in consideration of Tenant's assumption of the Tenant Remediation Scope.

(b) **Application.** The Remediation Credit shall be applied against the monthly installments of Base Rent first coming due after the Rent Commencement Date, as follows: (i) the monthly Base Rent installments for the first seven (7) full calendar months after the Rent Commencement Date shall be reduced to $0 (7 × $237,500 = $1,662,500); (ii) the monthly Base Rent installment for the eighth (8th) full calendar month after the Rent Commencement Date shall be reduced by $137,500 (so that Tenant pays $100,000 for such month); and (iii) commencing with the ninth (9th) full calendar month after the Rent Commencement Date, the full monthly Base Rent shall be payable.

(c) **Carryforward.** If Base Rent for any month is not payable in full (whether by reason of Casualty, Condemnation, Express Offset, or otherwise), the unapplied portion of the Remediation Credit shall be carried forward to the next month in which Base Rent is payable, and shall not be forfeited.

(d) **Cash Payment on Early Termination. If this Lease expires or is terminated before the Remediation Credit has been applied in full, Landlord shall pay to Tenant, in cash, within thirty (30) days after the effective date of such expiration or termination, the unapplied balance of the Remediation Credit.**

(e) **No Condition on Credit.** The Remediation Credit is not conditioned on the actual cost of the Tenant Remediation Scope, on the timing of the Remediation, or on Tenant's completion of the Remediation, except that Landlord's obligation to apply the Remediation Credit is subject to Tenant not being in an uncured monetary Event of Default.

(f) **Documentation.** Tenant shall deliver to Landlord, within thirty (30) days after completion of the Tenant Remediation Scope, a certificate of a LEP describing the work performed and the costs incurred. Landlord shall have the right to review such certificate, but shall have no right to audit Tenant's costs or to reduce the Remediation Credit on the basis of such review.

Section 9.6 Remediation Standards and Approvals.

(a) Tenant shall engage a LEP to oversee and certify completion of the Tenant Remediation Scope, and shall cause the Remediation to be performed in compliance with the RSRs, the ELUR, a DEEP-approved Remedial Action Plan, and a DEEP-approved Soil Management Plan.

(b) **Landlord Cooperation.** Landlord shall cooperate with Tenant, at Tenant's cost except where the approval is required because of the

ELUR's ambiguity or Landlord's acts, in obtaining all DEEP approvals, including any ELUR modification required by Section 9.3.

(c) **Engineered Barrier.** Tenant shall maintain, inspect, and repair the engineered barrier required by the ELUR in accordance with the ELUR's requirements, provided that the cost of reconstructing or repairing the engineered barrier to the extent it was deficient or improperly installed as of the Lease Commencement Date shall be borne by Landlord.

(d) **Delays.** Any delay in obtaining DEEP approvals shall constitute an extension of the Development Milestones in accordance with Section 4.4(a) and shall not constitute an Event of Default.

Section 9.7 Ongoing Environmental Compliance. Following completion of the Tenant Remediation Scope, Tenant shall be responsible for the ongoing environmental compliance obligations applicable to the Premises arising after the Lease Commencement Date, including (a) maintenance, inspection, and repair of the engineered barrier; (b) annual compliance certifications to DEEP; (c) groundwater monitoring required by any DEEP-approved plan; (d) the prohibition on installation of potable water wells; and (e) compliance with all Environmental Laws applicable to the operation of the Project. Landlord shall timely deliver to Tenant any notices, correspondence, or orders received from DEEP or any other Governmental Authority relating to the Premises.

Section 9.8 Transfer Act and Regulatory Filings. The Parties shall cooperate to determine whether this Lease, the commencement of construction, or the commencement of operations constitutes a "transfer of establishment" or otherwise triggers any filing obligation under the Connecticut Transfer Act (Conn. Gen. Stat. § 22a-134 *et seq.*) or any similar Environmental Law. **Landlord shall be responsible, at its sole cost and expense, for the preparation and filing of any Form I, II, III, or IV, or any successor form, required as a result of the transfer of the Premises to Tenant or the conditions existing at the Premises as of the Lease Commencement Date, and for any investigation, remediation, or verification required to obtain DEEP's approval of the same.** Tenant shall provide such information regarding its intended use of the Premises as Landlord reasonably requires. Landlord shall indemnify Tenant for any liability arising from any failure to make a required filing or to perform required investigation or remediation relating to pre-existing conditions.

Section 9.9 Environmental Insurance. Tenant shall maintain the environmental liability insurance required by Section 14.1(e). **The Parties acknowledge that pollution legal liability insurance may exclude known conditions, and that Tenant's inability to obtain coverage for the known conditions described in the Phase II Environmental Site Assessment shall not constitute a breach of this Lease so long as Tenant maintains the coverage required by Section 14.1(e) to the extent commercially available.** Landlord shall not be entitled to require Tenant to obtain coverage for pre-existing conditions.

Section 9.10 No Assumption; Tenant Not an Owner or Operator of Pre-Existing Conditions. Nothing in this Lease shall be construed to make Tenant the owner or operator of the Premises for purposes of Environmental Laws with respect to conditions existing as of the Lease Commencement Date, and Landlord acknowledges that Tenant's leasehold interest does not transfer to Tenant any liability for such conditions except as expressly provided in Section 9.4(a).

ARTICLE 10 — SECURITY DEPOSIT

Section 10.1 Form and Amount. On or before the Lease Commencement Date, Tenant shall deliver to Landlord a security deposit in the amount of **Five Million Seven Hundred Thousand Dollars ($5,700,000)**, equal to twenty-four (24) months of the initial monthly Base Rent, in the form of (a) an irrevocable standby letter of credit in the form attached as Exhibit J, issued by a commercial bank organized under the laws of the United States or any state thereof having a minimum credit rating of A- from Standard & Poor's or A3 from Moody's Investors Service (or an equivalent rating from a nationally recognized rating agency) and naming Landlord as beneficiary (the **"LOC"**), or (b) at Tenant's election, a cash deposit in such amount, held in an interest-bearing escrow account for the benefit of Landlord and Tenant (the **"Cash Deposit"**). The LOC and the Cash Deposit are referred to collectively as the **"Security Deposit."**

Section 10.2 Reduction. The Security Deposit shall be reduced to Two Million Eight Hundred Fifty Thousand Dollars ($2,850,000), equal to twelve (12) months of the initial monthly Base Rent, upon Tenant's satisfaction of the Reduction Conditions. The **"Reduction Conditions"** are satisfied when:

(a) the Project has achieved and maintained an overall occupancy rate of ninety percent (90%) or greater for twenty-four (24) consecutive months, measured as of the last day of each calendar month during such period;

(b) Tenant has delivered to Landlord a certificate of the Managing Member of Tenant certifying the occupancy rate for each month in such period, together with supporting rent roll data for each such month; and

(c) no Event of Default by Tenant has occurred and is continuing.

Section 10.3 Measurement of Occupancy. For purposes of Section 10.2, **"occupancy rate"** means the ratio, expressed as a percentage, of (a) the aggregate net rentable square footage of the residential units, office space, and retail space within the Project that is subject to a lease or occupancy agreement under which the occupant has taken possession and is obligated to pay rent (excluding any space occupied by Tenant or its Affiliates and excluding any space subject to a lease that is in default beyond applicable notice and cure periods), to (b) the aggregate net rentable square footage of all residential units, office space, and retail space within the Project that is then available for

occupancy. Tenant shall determine the rentable square footage in accordance with the measurement standard used in the Project's leases, consistently applied, and shall furnish the calculation to Landlord with its certificate.

Section 10.4 Reduction Mechanics and Timeline. Within thirty (30) days after Landlord's receipt of the certificate and supporting data described in Section 10.2(b), Landlord shall deliver to Tenant either (a) a written acknowledgment that the Reduction Conditions have been satisfied, or (b) a written objection stating with specificity the basis for the objection. **If Landlord fails to deliver a written objection within such thirty (30) day period, the Reduction Conditions shall be deemed satisfied.** If Landlord delivers a timely objection, the Parties shall confer in good faith for thirty (30) days, after which either Party may submit the dispute to resolution under Article 23. Upon satisfaction or deemed satisfaction of the Reduction Conditions, Tenant shall deliver (i) a replacement LOC in the reduced amount, or (ii) if a Cash Deposit is held, Landlord shall return the excess amount to Tenant, in each case within ten (10) Business Days. **Landlord's failure to return or exchange the Security Deposit within such period shall entitle Tenant to offset the excess amount against Base Rent.**

Section 10.5 Draws. Landlord may draw upon the Security Deposit only upon the occurrence of an uncured monetary Event of Default by Tenant, and only in the amount of the sums then due and unpaid (including interest and Landlord's reasonable costs of enforcement). **Landlord shall have no right to draw upon the Security Deposit (a) on account of a non-monetary Event of Default, (b) on account of a Milestone failure except as limited by Section 5.8, (c) in anticipation of a default, or (d) in an amount exceeding its actual damages.** Any amounts drawn shall be applied to Tenant's outstanding obligations under this Lease. Landlord shall give Tenant and each Leasehold Mortgagee written notice of any draw within two (2) Business Days thereafter.

Section 10.6 Replenishment. Within thirty (30) days after any draw by Landlord, Tenant shall replenish the Security Deposit to the required amount (as then reduced pursuant to Section 10.2). If Landlord's draw is determined to have been improper, Landlord shall return the amount drawn with interest at the rate set forth in Section 6.8 within ten (10) Business Days after such determination.

Section 10.7 Renewal; Evergreen. If the LOC has a stated expiration date, Tenant shall deliver a replacement or renewal LOC not later than thirty (30) days prior to its expiration. Failure to timely deliver a replacement or renewal LOC shall constitute an Event of Default only if such failure continues for fifteen (15) days after written notice from Landlord. Tenant may satisfy this obligation with an evergreen LOC acceptable to Landlord.

Section 10.8 Return of Security Deposit. Within thirty (30) days after the expiration or earlier termination of this Lease and the surrender of the Premises in the condition required by Article 20, Landlord shall return the Security Deposit to Tenant (or, at Tenant's election, to the Leasehold Mortgagee), less

any amount properly applied in accordance with Section 10.5. **Upon a Reverter Termination, the Security Deposit shall be applied as provided in Section 5.8.**

Section 10.9 No Landlord Lien. Landlord waives any landlord's lien, statutory or otherwise, on Tenant's Trade Fixtures, personal property, subleases, rents, accounts, and other assets of Tenant, and Landlord subordinates any such lien to the Leasehold Mortgage. Tenant's property shall not be subject to distress, distraint, or execution by Landlord.

ARTICLE 11 — USE, OPERATIONS, AND AFFORDABLE HOUSING

Section 11.1 Permitted Uses. Tenant may use the Premises for the following purposes and for no other purpose (the **"Permitted Uses"**): residential apartments (for rent only, subject to Section 11.6), Class A office, ground-floor retail, restaurants (including restaurants with liquor service duly licensed by the Connecticut Department of Consumer Protection), accessory parking, and ancillary amenity, management, leasing, mechanical, utility, and open space uses customary to a mixed-use development. **The following uses are expressly prohibited:** adult entertainment establishments, firearms sales, pawnshops, gasoline service stations, industrial, manufacturing, and warehousing uses, and any use prohibited by the ELUR.

Section 11.2 Prohibited Uses; ELUR. No use shall be made of the Premises that (a) violates the ELUR, (b) violates any applicable law, (c) constitutes a nuisance to adjoining property owners, or (d) involves the Release of Hazardous Materials other than in compliance with Environmental Laws and customary for the operation of the Project.

Section 11.3 Compliance with Law. Tenant shall comply with all applicable laws, ordinances, regulations, orders, and requirements of any Governmental Authority having jurisdiction over the Premises or the Project, including zoning, building, fire, coastal, floodplain, and Environmental Laws. Tenant's obligation is subject to Landlord's obligations under Article 9 with respect to pre-existing conditions.

Section 11.4 Landlord Approvals. Except as expressly provided in this Lease, Landlord shall have no right to approve Tenant's use, operation, subletting, or management of the Project. Where Landlord's approval is required, Landlord shall respond within ten (10) Business Days after receipt of Tenant's request, and failure to respond shall constitute approval.

Section 11.5 Affordable Housing Covenant.

(a) **Requirement.** Not fewer than fifteen percent (15%) of the residential dwelling units constructed within the Project shall be designated as affordable housing units, affordable to households earning at or below eighty percent (80%) of AMI as published annually by HUD for the

applicable Port Calloway metropolitan statistical area, for the Affordable Housing Period.

(b) **“Affordable Housing Period”** means the period commencing on the date the first residential certificate of occupancy for the Residential Tower is issued and ending on the earlier of (i) the date that is thirty (30) years thereafter, or (ii) the expiration or earlier termination of this Lease. **The Parties acknowledge that the recorded Declaration of Restrictive Covenants dated November 15, 2019 (Volume 408, Page 230) purports to impose the affordable housing requirement for the full term of any ground lease, and Landlord agrees, as a condition to the Lease Commencement Date, to execute and record an amendment to such Declaration limiting the affordable housing obligation to the Affordable Housing Period and conforming such Declaration to this Section 11.5.**

(c) **Calculation.** The number of affordable housing units required shall be fifteen percent (15%) of the total number of residential dwelling units constructed in the Project, rounded to the nearest whole unit (with one-half unit rounded up), calculated on the basis of the residential dwelling units as of the date the first residential certificate of occupancy is issued. If the total number of residential dwelling units is subsequently changed by renovation, conversion, partial demolition, or other alteration, the required number of affordable units shall be recalculated proportionately, and Tenant shall have twelve (12) months to conform.

(d) **Distribution and Placement.** Affordable housing units shall be (i) located on floors above the ground floor, consistent with the ELUR and Section 9.3(e), and (ii) distributed throughout the Residential Tower rather than concentrated in a single floor or area, on a unit-type basis reasonably proportionate to the market-rate unit mix (that is, the same proportion of studio, one-bedroom, two-bedroom, and three-bedroom units as exists in the market-rate mix), subject to practical constraints.

(e) **Income Verification and Monitoring.** Tenant shall establish and administer income verification and qualification procedures reasonably consistent with applicable HUD and Connecticut Housing Finance Authority practice, and shall provide an annual compliance report to Landlord. The Parties shall designate the City’s Office of Community Development (or such other entity as the Parties may agree) as the monitoring entity, with authority to inspect records (subject to applicable privacy law) and to enforce the covenant through specific performance. **Neither Landlord nor the City shall have any right of re-entry, forfeiture, or termination of this Lease by reason of a failure to comply with the affordable housing covenant, and the sole remedies for non-compliance shall be specific performance and, if Tenant fails to perform after notice and a ninety (90) day cure**

period, monetary damages measured by the value of the non-compliance.

(f) **Regulatory Agreement.** The Parties shall execute an Affordable Housing Regulatory Agreement substantially in the form attached as Exhibit K concurrently with the execution of this Lease, which shall set forth the matters described in this Section 11.5, and Landlord shall record or decline to record such agreement consistently with Section 11.5(e).

(g) **Tax Credits.** Tenant may utilize low-income housing tax credits or other governmental incentives in connection with the affordable housing units, and Landlord shall reasonably cooperate with any application therefor, subject to Tenant’s obligation to satisfy the requirements of this Section 11.5.

Section 11.6 Conversion to Condominium or Cooperative. Tenant shall not submit the Project, or any portion of it, to a condominium form of ownership or convert the residential units to cooperative ownership without Landlord’s prior written consent, which consent shall not be unreasonably withheld, conditioned, or delayed, and which shall not be required if such conversion does not (a) result in a transfer of any interest in the fee estate, (b) impair the Leasehold Mortgagee’s security, or (c) conflict with the ELUR or applicable law. **Any such conversion shall be structured so that the ground leasehold interest remains vested in a single entity (or in a structure reasonably acceptable to Landlord, the Leasehold Mortgagee, and the Issuing Title Company) and this Lease remains in full force and effect in accordance with its terms.** Landlord’s consent shall be deemed given if Landlord does not respond in writing within thirty (30) days after receiving a written request that includes the proposed condominium documents and confirming that the conditions in clauses (a) through (c) are satisfied.

Section 11.7 Signage; Name. Tenant may install signage consistent with applicable law and the approved site plan. Landlord may not require Tenant to use or display any particular name for the Project.

Section 11.8 Management. Tenant shall have the exclusive right to manage and operate the Project and to engage management, leasing, and service providers, including Affiliates of Tenant, and Landlord shall have no approval right over management other than as set forth in Section 5.4(c)(iii).

Section 11.9 Public Access and Liability. Tenant shall maintain public access to the open space required by Section 4.8 and the pedestrian easement described in Section 4.10 consistent with the approved site plan. **Landlord shall, at its sole cost, defend, indemnify, and hold Tenant harmless from and against claims by members of the public arising from the public use of the pedestrian easement area and the open space, except to the extent caused by Tenant’s negligence or willful misconduct. Landlord shall cause the City to name Tenant as an additional insured on the City’s**

general liability program covering the public promenade and shall waive subrogation against Tenant to the extent of insurance proceeds.

ARTICLE 12 — ALTERATIONS, FIXTURES, AND LIENS

Section 12.1 Right to Alter. Tenant may, at its sole cost and expense, make alterations, additions, improvements, repairs, and replacements to the Improvements, and may demolish, reconstruct, expand, renovate, or reconfigure the Improvements, without Landlord's consent, subject to (a) compliance with applicable law, the ELUR, and this Lease; (b) any required Permit; (c) the rights of the Leasehold Mortgagee; and (d) the following notice requirements: Tenant shall deliver to Landlord not less than thirty (30) days' prior written notice describing any work that involves structural changes to the Improvements or that is reasonably expected to cost more than $15,000,000, and Landlord shall have no approval right with respect to such work.

Section 12.2 Final Ten Years. During the final ten (10) years of the Term (from and after October 1, 2114), Tenant shall not undertake alterations, renovations, or capital improvements materially exceeding the threshold described in Section 12.1 without Landlord's prior written consent, which consent shall not be unreasonably withheld, conditioned, or delayed and shall be deemed given if Landlord does not object in writing within twenty (20) Business Days. **Landlord's consent shall not be required for (a) any work required by applicable law, including any work required to comply with the ELUR, Environmental Laws, building codes, floodplain requirements, or coastal resilience requirements; (b) any work required to repair Casualty damage or to respond to a Condemnation; (c) any work required to maintain the structural integrity or safe operation of the Improvements; (d) any work required by a subtenant under a lease approved or permitted by this Lease; or (e) any work required by the Leasehold Mortgagee or by an insurer.**

Section 12.3 Trade Fixtures. Tenant may remove its Trade Fixtures at any time during the Term and at the expiration or earlier termination of the Term, provided that Tenant repairs any damage to the Premises and the Improvements caused by such removal.

Section 12.4 Liens. Tenant shall not permit any lien to attach to the Premises or the Improvements arising from work performed for Tenant, other than liens that Tenant causes to be discharged, bonded over, or insured over within sixty (60) days after notice. **Landlord shall have no right to subject the Premises to any mechanics' or materialmen's lien arising from work performed for Landlord.**

Section 12.5 Ownership of Improvements. During the Term, the Improvements shall be the property of Tenant (subject to the Leasehold Mortgage) and shall be deemed part of the realty for purposes of title insurance and applicable law. **At the expiration of the Term, and not before, the**

Improvements shall become the property of Landlord without payment, subject to Article 20.

ARTICLE 13 — MAINTENANCE AND REPAIR

Section 13.1 Tenant's Obligations. Tenant shall, at its sole cost and expense, maintain, repair, replace, and keep in good order and condition the Premises and the Improvements, including all building systems, roofs, facades, parking structures, site work, landscaping, the Bulkhead (subject to Section 4.11(b)), the engineered barrier (subject to Section 9.6(c)), and the open space required by Section 4.8, in each case in a manner consistent with comparable Class A mixed-use properties in the region, ordinary wear and tear, Casualty, and Condemnation excepted.

Section 13.2 Landlord's Obligations. Landlord shall have no obligation to maintain or repair the Premises or the Improvements arising during the Term except as expressly provided in Section 4.11(b) (Bulkhead), Section 9.4(b) (pre-existing environmental conditions), Section 9.6(c) (engineered barrier), and Section 15.3 (Casualty to the extent caused by Landlord's act).

Section 13.3 No Landlord's Warranty of Suitability. Except as expressly set forth in Article 3 and Article 9, Landlord makes no representation or warranty as to the suitability of the Premises for the Permitted Uses or the Project, and Tenant acknowledges that it has conducted its own due diligence.

ARTICLE 14 — INSURANCE

Section 14.1 Tenant's Insurance Obligations. Throughout the Term, Tenant shall procure and maintain, at its sole cost and expense, with carriers having a minimum financial strength rating of A-VIII from A.M. Best Company or an equivalent rating from a nationally recognized rating agency, and in forms reasonably acceptable to Landlord:

(a) **Commercial General Liability Insurance** on an occurrence basis with limits of not less than $10,000,000 per occurrence and $20,000,000 in the annual aggregate, covering bodily injury, property damage, personal injury, and advertising injury arising out of the ownership, use, occupancy, maintenance, or operation of the Premises and the Project;

(b) **Umbrella or Excess Liability Insurance** with limits of not less than $50,000,000 per occurrence and in the aggregate, following form over the coverages required by clauses (a), (f), and (g);

(c) **All-Risk (Special Form) Property Insurance** on a replacement cost basis (without deduction for depreciation), including fire, windstorm, vandalism, malicious mischief, flood, and such other risks as are customarily insured for comparable Class A properties, covering all Improvements, together with ordinance or law coverage (including coverage for the increased cost of construction required by building code changes) and, during construction, builder's risk insurance on a

completed value basis covering the full value of all construction work in progress, materials, and supplies, and soft cost and delay in completion coverage in amounts reasonably determined by Tenant;

(d) **Flood Insurance.** In addition to the flood coverage included in the property policy required by clause (c), Tenant shall maintain flood insurance covering the Improvements in an amount equal to the full replacement cost of the Improvements (through private market flood or difference-in-conditions coverage to the extent NFIP limits are insufficient, which the Parties acknowledge they will be for a project of this size), and in no event less than the maximum coverage available under the National Flood Insurance Program;

(e) **Environmental/Pollution Legal Liability Insurance** with limits of not less than $5,000,000 per occurrence and $10,000,000 in the annual aggregate, covering claims arising from pollution conditions at, on, under, or migrating from the Premises, including remediation costs, third-party bodily injury, and third-party property damage, to the extent such coverage is commercially available on commercially reasonable terms;

(f) **Workers’ Compensation Insurance** as required by the laws of the State of Connecticut, and Employer’s Liability Insurance with limits of not less than $1,000,000;

(g) **Business Interruption and Rental Loss Insurance** covering not less than twelve (12) months of Base Rent, Percentage Rent, and operating expenses; and

(h) **Such other coverages** as are customarily maintained by owners or operators of comparable Class A mixed-use projects in the region, including equipment breakdown, boiler and machinery, crime, and cyber coverage.

Section 14.2 Additional Insureds; Loss Payees. Landlord, the City, and each Leasehold Mortgagee shall be named as additional insureds on the commercial general liability, umbrella/excess, and environmental policies. The Leasehold Mortgagee shall be named as first mortgagee and loss payee on the property, builder’s risk, business interruption, and flood policies. Landlord shall be named as an additional loss payee on the property insurance policies solely with respect to its interest as fee owner, subject to Article 15 and the SNDA.

Section 14.3 Waiver of Subrogation. Landlord and Tenant each waive, and shall cause their respective insurers to waive, all rights of subrogation against the other party and, in the case of Tenant, against the Leasehold Mortgagee and Landlord’s and the City’s officials, employees, and agents, with respect to any loss or damage covered by the insurance required by this Article 14 (whether or not such insurance is actually maintained), to the extent permitted by the applicable policies and applicable law. The Parties intend that each shall look solely

to its own insurers for recovery, and no Party shall be liable to another for any insured loss.

Section 14.4 Landlord’s Insurance. Landlord shall not be required to maintain any insurance other than (a) general liability and property insurance covering its fee interest and its own operations, at its own cost, which shall not cover the Improvements (the cost of which is Tenant’s obligation), and (b) the insurance obligations allocated to Landlord under Section 11.9. **Landlord’s insurance shall not be structured in a manner that results in a premium charge to Tenant or a claim against Tenant.**

Section 14.5 Certificates; Revisions. Tenant shall deliver certificates of insurance to Landlord and the Leasehold Mortgagee prior to the Lease Commencement Date, annually thereafter, and upon request, and shall provide not less than thirty (30) days’ prior written notice of cancellation, non-renewal, or material modification of any required coverage. **The Parties acknowledge that the insurance limits and coverages set forth in this Article 14 reflect market conditions as of 2025 and that, given the ninety-nine (99) year Term, the Parties shall review the insurance requirements every ten (10) years and may mutually agree to adjust them to reflect then-current market practice, availability, and cost, provided that in no event shall the required coverages be reduced below those customarily required by institutional leasehold lenders.**

Section 14.6 Self-Insurance. Tenant may satisfy the requirements of Section 14.1(a), (b), and (h) through a program of self-insurance, deductibles, retentions, or captive insurance reasonably acceptable to Landlord, provided that Tenant maintains a tangible net worth (together with its Affiliates) of not less than $100,000,000 and delivers evidence thereof annually.

ARTICLE 15 — CASUALTY

Section 15.1 Notice and Restoration. If a Casualty occurs, Tenant shall give Landlord notice within ten (10) Business Days after Tenant becomes aware of it. Tenant shall promptly and diligently restore the Improvements to substantially their pre-Casualty condition (or to a condition at least as valuable and functional, and in any event in compliance with then-current applicable law), using available insurance proceeds and such additional funds as Tenant determines to invest.

Section 15.2 Rent Abatement. During the period of restoration following a Casualty, Base Rent and Percentage Rent shall abate in proportion to the portion of the Premises or the Improvements rendered untenantable and not used by Tenant, measured by the ratio of the rentable area so rendered untenantable to the total rentable area of the Improvements (and, with respect to Percentage Rent, by the reduction in Gross Revenues reasonably attributable to the Casualty). **Rent shall abate from the date of the Casualty until the earlier of (a) the date the affected portion is restored to a condition**

suitable for occupancy and (b) the date Tenant reoccupies the affected portion.

Section 15.3 Landlord-Caused Casualty. If a Casualty is caused by the negligence or willful misconduct of Landlord, its agents or employees, Landlord shall be responsible for the deductible and for any uninsured loss to the extent of its liability, and rent shall abate in accordance with Section 15.2.

Section 15.4 Tenant's Termination Rights. Tenant may terminate this Lease upon written notice to Landlord if: (a) a Casualty renders the Premises or a material portion of the Improvements unsuitable for the Permitted Uses and restoration is not economically feasible in Tenant's reasonable judgment; (b) the cost of restoration exceeds the available insurance proceeds by more than twenty percent (20%) of the total insured value of the Improvements; (c) the Casualty occurs during the final fifteen (15) years of the Term and the cost of restoration would exceed the value of the remaining leasehold estate, as reasonably determined by Tenant; or (d) the restoration cannot reasonably be completed within thirty-six (36) months after the Casualty, taking into account applicable law, available insurance, and required permits. Any termination under this Section 15.4 shall be effective not less than sixty (60) days after notice, and Tenant shall assign to Landlord, or to the Leasehold Mortgagee at its election, all right, title, and interest in the insurance proceeds and the Improvements.

Section 15.5 Landlord's Termination Rights. Landlord shall have no right to terminate this Lease on account of a Casualty, except that Landlord may terminate if (a) the Casualty renders the entire Improvements untenantable, (b) Tenant has elected not to restore, and (c) Tenant has failed to commence restoration within twelve (12) months after the Casualty. Any such termination shall be subject to Section 15.6 and to the rights of the Leasehold Mortgagee.

Section 15.6 Mortgagee Rights. Notwithstanding Sections 15.4 and 15.5, no termination by reason of a Casualty shall be effective unless and until (a) each Leasehold Mortgagee has received thirty (30) days' prior written notice of the proposed termination and (b) the Leasehold Mortgagee has been afforded the opportunity to restore the Improvements or to designate a transferee to do so on the terms set forth in Section 17.5. Insurance proceeds shall be made available for restoration and, at the election of the Leasehold Mortgagee, applied to the Indebtedness.

Section 15.7 Waiver of Statutory Provisions. The Parties waive the provisions of any law that would otherwise govern the effect of a Casualty on this Lease in a manner inconsistent with this Article 15, to the extent permitted by applicable law.

ARTICLE 16 — CONDEMNATION

Section 16.1 Total Condemnation. If all of the Premises, or so much of the Premises or the Improvements as renders the Premises unsuitable for the

Permitted Uses, is taken by Condemnation, this Lease shall terminate as of the date title vests in the condemning authority or the condemning authority takes possession, whichever occurs first.

Section 16.2 Partial Condemnation. If a Condemnation does not render the Premises unsuitable for the Permitted Uses, this Lease shall continue in full force and effect, Tenant shall restore the remaining Improvements to the extent practicable (using available condemnation proceeds), and Base Rent and the Breakpoint shall be equitably adjusted to reflect the reduction in the area and value of the Premises and the Improvements. **In addition, any Development Milestone deadline shall be extended by the period of delay caused by the Condemnation, and any Milestone obligation shall be equitably adjusted to reflect the reduced scope of the Project.**

Section 16.3 Allocation of Award. The award in any Condemnation shall be allocated as follows: (a) Landlord shall receive the portion of the award attributable to the value of the fee interest in the land, determined as the value of the land unimproved and unencumbered by this Lease; (b) Tenant shall receive the portion of the award attributable to the value of the leasehold estate and the Improvements, determined in accordance with the appraisal procedure set forth in Section 5.6, applied mutatis mutandis; and (c) Tenant shall receive, in addition, any award or payment for Trade Fixtures, personal property, business interruption, moving expenses, loss of goodwill, and relocation expenses, which amounts shall not be shared with Landlord.

Section 16.4 Separate Claims. Landlord and Tenant shall each have the right to file a separate claim for the portion of the award allocated to it under Section 16.3, and each Party shall cooperate with the other in the prosecution of such claims. **Neither Party shall settle its claim in a manner that adversely affects the other Party’s claim without the other Party’s written consent.**

Section 16.5 Payment to Leasehold Mortgagee. Any portion of the award payable to Tenant shall be paid to the Leasehold Mortgagee to the extent of the Indebtedness, or as otherwise directed under the SNDA. Landlord shall have no claim to any portion of the award allocable to the Leasehold Mortgagee’s interest.

Section 16.6 Temporary Taking. A temporary taking of all or any portion of the Premises shall not terminate this Lease, and Tenant shall be entitled to the entire award for the period of the temporary taking, subject to Section 16.5.

Section 16.7 Definition. “Condemnation” means any taking of all or any portion of the Premises, the Improvements, or Tenant’s leasehold estate, by eminent domain or condemnation, or any conveyance in lieu thereof under threat of condemnation, by any Governmental Authority having the power of eminent domain.

ARTICLE 17 — LEASEHOLD FINANCING AND LEASEHOLD MORTGAGEE PROTECTIONS

Section 17.1 Right to Encumber. Tenant may grant one or more Leasehold Mortgages encumbering Tenant’s entire leasehold estate in the Premises and the Improvements to any Leasehold Mortgagee, without the prior consent, approval, or joinder of Landlord and without the payment of any consent fee, administrative charge, or other compensation to Landlord. No approval, consent, or other condition from Landlord shall be required for the granting, recording, enforcement, foreclosure, or assignment of any Leasehold Mortgage. A Leasehold Mortgage may encumber the entire leasehold estate created by this Lease, together with all Improvements, fixtures, and appurtenances now or hereafter constructed on the Premises, and all subleases, rents, and revenues, and Tenant may execute a collateral assignment of leases and rents and an assignment of construction contracts and plans in favor of the Leasehold Mortgagee, all without Landlord’s consent.

Section 17.2 Notice to Landlord. Tenant shall give Landlord written notice of the granting of any Leasehold Mortgage within fifteen (15) Business Days after its execution, identifying the Leasehold Mortgagee, the original principal amount, and the notice address for such Leasehold Mortgagee. **Landlord shall, upon request, execute a reasonable acknowledgment of a Leasehold Mortgage and a consent to collateral assignment, at no cost to Tenant or the Leasehold Mortgagee.**

Section 17.3 Recognition of Leasehold Mortgagee. Upon receipt of the notice contemplated by Section 17.2, Landlord shall recognize the named Leasehold Mortgagee as entitled to the rights set forth in this Article 17. Landlord shall maintain a current list of Leasehold Mortgagees and shall deliver to each Leasehold Mortgagee, at the address designated in its notice, copies of all notices, demands, and other communications delivered to Tenant under this Lease, **simultaneously** with delivery to Tenant. **Any notice of default or notice of termination delivered to Tenant without simultaneous delivery to each Leasehold Mortgagee shall be void and of no effect.** Each Leasehold Mortgagee shall designate its notice address and may change it by written notice to Landlord and Tenant. Bayside Federal Lending Corp.’s initial notice address is: 200 Atlantic Boulevard, Stamford, Connecticut 06902, Attention: Sandra Milliken, Senior Vice President, Commercial Real Estate Lending, with a copy to Lender’s counsel at the address Lender designates.

Section 17.4 SNDA. Landlord shall execute and deliver to Tenant and each Leasehold Mortgagee, simultaneously with or prior to the first advance of the construction loan and in any event on or before the Lease Commencement Date, a Subordination, Non-Disturbance, and Attornment Agreement substantially in the form attached as Exhibit E and in form and substance reasonably acceptable to the Leasehold Mortgagee, which shall contain at a minimum:

(a) Landlord’s acknowledgment of the existence and first priority of the Leasehold Mortgage and recognition of the Leasehold Mortgagee’s interest in Tenant’s leasehold estate and the Improvements;

(b) Landlord’s agreement not to disturb the Leasehold Mortgagee’s security interest, or the rights of any purchaser at a foreclosure sale or transferee pursuant to a deed in lieu of foreclosure, in this Lease or the Improvements, so long as the obligations of Tenant under this Lease are performed (or cured by the Leasehold Mortgagee);

(c) Landlord’s agreement to recognize the Leasehold Mortgagee, its designee, or any purchaser at foreclosure or transferee under a deed in lieu of foreclosure, as Tenant under this Lease upon the same terms and conditions as this Lease, without Landlord’s approval and without any transfer fee;

(d) the Leasehold Mortgagee’s cure rights and notice rights set forth in Sections 5.4 and 17.6;

(e) the New Lease right set forth in Section 17.5;

(f) the prohibition on voluntary surrender and amendment set forth in Section 17.7;

(g) the Leasehold Mortgagee’s rights with respect to Casualty and Condemnation proceeds and restoration; and

(h) such additional provisions as the Leasehold Mortgagee may reasonably require.

Landlord shall execute and deliver an SNDA (or a replacement or amendment) in favor of any successor or additional Leasehold Mortgagee, including any refinancing lender, upon request and without fee, on the same terms as Exhibit E, within fifteen (15) Business Days after request. Landlord shall also execute such estoppel certificates as are reasonably requested in connection with any financing, refinancing, or sale, in the form attached as Exhibit G, within ten (10) Business Days after request, certifying as to the matters reasonably requested and as to which Landlord can certify consistent with the facts.

Section 17.5 New Lease Right. If this Lease is terminated for any reason whatsoever — including without limitation a Tenant Event of Default, a Reverter Termination, surrender, rejection in bankruptcy, or operation of law — the Leasehold Mortgagee (or its designee) shall have the right, upon written request delivered to Landlord within sixty (60) days after the Leasehold Mortgagee’s receipt of notice of such termination, to enter into a new ground lease of the Premises (the “New Lease”) with Landlord on the same terms and conditions as this Lease (including the same Base Rent, the same Term as the remainder of the original Term, and the same rights and obligations), provided that:

(a) the Leasehold Mortgagee (or its designee) cures all monetary defaults then existing under this Lease within sixty (60) days after the effective date of the New Lease;

(b) the Leasehold Mortgagee (or its designee) cures all non-monetary defaults that are reasonably susceptible of cure within ninety (90) days after the effective date of the New Lease, or, if such cure cannot reasonably be completed within such period, commences such cure within such ninety (90) day period and thereafter diligently and continuously pursues cure to completion within a reasonable time, but in no event more than one hundred eighty (180) days after the effective date of the New Lease;

(c) the Leasehold Mortgagee (or its designee) assumes all obligations under the New Lease prospectively from the effective date of the New Lease; and

(d) the New Lease provides that all subleases, licenses, and occupancy agreements entered into by Tenant or any subtenant before the termination of this Lease shall be recognized by Landlord.

Landlord shall execute and deliver the New Lease within thirty (30) days after the Leasehold Mortgagee's written request, and the New Lease shall be effective as of the date of termination of this Lease and shall have a priority in all respects equal to the priority of this Lease. The New Lease shall not require the payment of any transfer fee, consent fee, or premium to Landlord, and the Leasehold Mortgagee shall not be required to pay any Rent for any period prior to the termination of this Lease except to the extent of any monetary default cured under clause (a). **Landlord's obligation to enter into a New Lease shall not be conditioned on the Leasehold Mortgagee's payment of any amount in excess of the amounts described in clauses (a) through (c).** The form of the New Lease and the related Leasehold Mortgagee recognition provisions are attached as Exhibit F.

Section 17.6 Leasehold Mortgagee Cure Rights. No termination of this Lease (whether under Article 5, Article 19, or otherwise) shall be effective unless and until each Leasehold Mortgagee has received the notice required by Section 17.3 and the applicable cure periods set forth below have expired without cure by the Leasehold Mortgagee:

(a) **Monetary Defaults.** The Leasehold Mortgagee shall have sixty (60) days from its receipt of notice of any monetary default to cure such default on behalf of Tenant. **The Leasehold Mortgagee may cure any monetary default without regard to whether the Leasehold Mortgagee has commenced foreclosure, and Landlord shall accept cure by a Leasehold Mortgagee as if performed by Tenant.**

(b) **Non-Monetary Defaults.** The Leasehold Mortgagee shall have ninety (90) days from its receipt of notice of any non-monetary default to cure such default, or, if such cure cannot reasonably be completed within such

ninety (90) day period, the Leasehold Mortgagee shall have commenced cure within such period and shall thereafter diligently and continuously pursue cure to completion within a reasonable time not to exceed one hundred eighty (180) days after its receipt of notice.

(c) **Milestone Defaults.** The Leasehold Mortgagee's cure period with respect to a Milestone failure shall be the Mortgagee Cure Period described in Section 5.4(b), and the Leasehold Mortgagee may cure in the manner described in Section 5.4(c).

(d) **Post-Foreclosure Cure.** If the Leasehold Mortgagee or its designee acquires Tenant's leasehold estate through foreclosure, deed in lieu of foreclosure, or assignment, the Leasehold Mortgagee shall have an additional sixty (60) days after such acquisition to cure any defaults that were not cured before such acquisition, and no termination shall be effective during such period.

(e) **Additional Period; Run. The cure periods set forth in this Section 17.6 shall run in addition to, and not concurrently with, any cure periods afforded to Tenant under this Lease.** Landlord shall accept cure by the Leasehold Mortgagee as if such cure had been performed by Tenant.

(f) **No Termination for Matters the Mortgagee Cannot Cure.** Landlord shall not terminate this Lease on account of any default that is not reasonably susceptible of cure by the Leasehold Mortgagee (including any default consisting of Tenant's bankruptcy filing or insolvency) unless and until the Leasehold Mortgagee has been afforded the rights set forth in Section 17.9 and Section 17.5.

Section 17.7 No Voluntary Surrender; No Amendment Without Mortgagee Consent. For so long as any Leasehold Mortgage remains in effect, Landlord shall not accept a voluntary surrender, cancellation, or termination of this Lease from Tenant, and Landlord and Tenant shall not amend, modify, supplement, or terminate this Lease in any material respect, without the prior written consent of each Leasehold Mortgagee. Any purported surrender, amendment, modification, supplement, or termination effected without such consent shall be void and of no force or effect as against the Leasehold Mortgagee, and this Lease shall continue in full force and effect as if such purported action had not occurred. "Material" amendments include any amendment to Rent, the Term, the Permitted Uses, the reverter and Improvement Compensation provisions, the New Lease right, the cure periods, or the Security Deposit. Non-material amendments (including administrative corrections and changes to notice addresses) shall not require Leasehold Mortgagee consent.

Section 17.8 Foreclosure and Assignment. The Leasehold Mortgagee shall have the unconditional right to foreclose the Leasehold Mortgage (whether by judicial foreclosure, power of sale, or otherwise), to accept a

deed in lieu of foreclosure, and to assign this Lease and the leasehold estate to a qualified transferee at or following any foreclosure sale or deed-in-lieu transfer, in each case without the prior consent of Landlord. Any such transferee shall meet the objective financial and experience qualifications set forth in Section 18.4. **Landlord shall recognize any such transferee as Tenant under this Lease and shall not unreasonably withhold, condition, or delay such recognition, and shall execute any documents reasonably requested by the Leasehold Mortgagee to effectuate or confirm the foreclosure, transfer, or assignment, including a written assumption of this Lease by the transferee.** No foreclosure, deed-in-lieu transfer, assignment by or to a Leasehold Mortgagee, or transfer to a designee or affiliate of a Leasehold Mortgagee shall constitute a Transfer requiring Landlord’s consent or trigger the Right of First Refusal described in Article 18.

Section 17.9 Bankruptcy Protections.

(a) If Tenant becomes a debtor in any proceeding under Title 11 of the United States Code or any similar state insolvency law, the Leasehold Mortgagee shall have the right (i) to request that any trustee, debtor in possession, or other party in interest assume or reject this Lease in a timely manner consistent with 11 U.S.C. § 365; (ii) to cure any defaults under this Lease and to provide adequate assurance of future performance on behalf of Tenant to the extent necessary to prevent rejection of this Lease; and (iii) to seek an extension of time within which to assume this Lease under 11 U.S.C. § 365(d)(4) and any applicable order.

(b) **The New Lease right set forth in Section 17.5 shall survive rejection of this Lease in bankruptcy to the fullest extent permitted by applicable law, and Landlord shall recognize the Leasehold Mortgagee’s right to obtain a New Lease notwithstanding such rejection.**

(c) **Tenant’s rights under 11 U.S.C. § 365(h) to retain its leasehold estate, and the Leasehold Mortgagee’s rights under this Article 17, shall not be impaired by any provision of this Lease. Landlord expressly acknowledges Tenant’s rights under 11 U.S.C. § 365(h)(1)(A)(ii) and agrees that Tenant’s possessory rights and its right to enforce Landlord’s obligations may be retained notwithstanding rejection.**

(d) **Any provision of this Lease that would terminate, modify, or permit the modification of this Lease solely by reason of Tenant’s insolvency or the commencement of a bankruptcy proceeding (an “ipso facto” provision) shall be enforceable only to the extent enforceable under 11 U.S.C. § 365(e) and applicable law.**

Section 17.10 Multiple Leasehold Mortgagees; Successor Mortgagee. If more than one Leasehold Mortgage is outstanding, the Leasehold Mortgagee

holding the most senior Leasehold Mortgage shall be entitled to exercise the rights under this Article 17, and each other Leasehold Mortgagee shall be entitled to the notice and cure rights in a manner consistent with the intercreditor priorities. A Leasehold Mortgagee that assigns its Leasehold Mortgage shall be discharged from its obligations under this Article 17, and its assignee shall succeed to its rights. Landlord shall recognize any such assignee upon notice.

Section 17.11 Subordination of Landlord’s Fee Encumbrances; Non-Disturbance. In addition to Section 3.9, Landlord shall, upon Tenant’s or any Leasehold Mortgagee’s request, cause any holder of a mortgage or deed of trust encumbering Landlord’s fee interest, and any other Person holding an interest senior to this Lease, to execute a subordination and non-disturbance agreement recognizing this Lease and the Leasehold Mortgage and agreeing not to disturb them. **This Lease shall be senior to any such encumbrance, and any fee mortgagee that forecloses shall take the fee interest subject to this Lease.**

Section 17.12 Proceeds. Insurance proceeds payable on account of damage to the Improvements shall be made available for restoration and, at the election of the Leasehold Mortgagee, applied to the Indebtedness. Condemnation proceeds allocable to Tenant under Section 16.3 shall be paid to the Leasehold Mortgagee to the extent of the Indebtedness or as the SNDA provides. Landlord shall have no claim to any such proceeds except as provided in Section 16.3(a).

Section 17.13 Cooperation; Fees. Landlord shall cooperate with Tenant and each Leasehold Mortgagee in connection with any financing, refinancing, foreclosure, or sale of the leasehold estate, and shall execute such consents, estoppels, SNDAs, recognition agreements, and assumptions as are reasonably requested, in each case without the payment of any fee, cost, or charge other than reimbursement of Landlord’s reasonable out-of-pocket attorneys’ fees not exceeding $7,500 per instrument. **Landlord shall have no right to review, approve, or comment on the terms of any Leasehold Mortgage, loan document, or financing arrangement between Tenant and a Leasehold Mortgagee.**

ARTICLE 18 — TRANSFERS, SUBLETTING, AND RIGHT OF FIRST REFUSAL

Section 18.1 Definition of Transfer. **“Transfer”** means any assignment, conveyance, or other transfer of this Lease or of any leasehold estate or interest in the Premises, whether voluntarily, involuntarily, or by operation of law, and any change in control of Tenant. A Transfer does not include (a) a sublease of space in the ordinary course of the operation of the Project; (b) the grant of any Leasehold Mortgage; (c) any transfer to a Leasehold Mortgagee, its designee, or a purchaser at foreclosure or under a deed in lieu of foreclosure; or (d) any transfer described in Section 18.3.

Section 18.2 Consent Required for Transfers. Tenant shall not effect a Transfer to a Person that is not an Affiliate without Landlord's prior written consent, which consent shall not be unreasonably withheld, conditioned, or delayed and shall be subject to Landlord's Right of First Refusal in Section 18.5. **Landlord shall respond to a written request for consent within thirty (30) days after receipt of the request and all reasonably requested information; if Landlord fails to respond within such period, consent shall be deemed given.** Any purported Transfer in violation of this Article 18 shall be void.

Section 18.3 Permitted Transfers. No consent of Landlord and no Right of First Refusal shall apply to any of the following (each a "Permitted Transfer"):

(a) any Transfer to an Affiliate of Tenant;

(b) any Transfer to Coventry Capital Partners LP, its affiliates, related funds, or any entity managed or advised by Coventry Capital Partners LP or its affiliates, or to Marcus Ellison or his estate planning vehicles;

(c) any grant of a Leasehold Mortgage, and any Transfer to or by a Leasehold Mortgagee or its designee, including any foreclosure, deed in lieu of foreclosure, assignment, or transfer in connection with the exercise of remedies;

(d) any Transfer resulting from a merger, consolidation, or reorganization of Tenant, provided the surviving entity assumes this Lease;

(e) any public offering, private placement, or transfer of direct or indirect equity interests in Tenant or any of its direct or indirect owners, including any transfer of limited partner interests, membership interests, or interests in a real estate investment trust, fund, or similar vehicle;

(f) any Transfer to a Person that acquires all or substantially all of Tenant's assets or equity, provided such Person (i) has a tangible net worth of not less than the greater of (A) $75,000,000 and (B) the amount of Tenant's net worth at the time of the Transfer, and (ii) has, together with its affiliates, not less than ten (10) years' experience developing, owning, or operating mixed-use properties of comparable size in the Northeast;

(g) any Transfer pursuant to a plan of reorganization, dissolution, or liquidation effected in compliance with Article 18; and

(h) any Transfer to a governmental entity or authority.

Section 18.4 Objective Qualification Standards. For purposes of Section 17.8 and Section 18.3(f), a **"qualified transferee"** is a Person that (a) has a tangible net worth, determined in accordance with generally accepted accounting principles, of not less than $75,000,000 (or, if the transferee is an institutional investor, managed funds or committed capital of not less than $250,000,000), (b) together with its affiliates has not less than ten (10) years'

experience developing, owning, or operating mixed-use or multifamily properties of comparable size and quality, and (c) is not a Person with whom Landlord is prohibited from transacting business under applicable law.

Section 18.5 Right of First Refusal.

(a) **Grant.** During the first twenty (20) years of the Term (that is, from the Lease Commencement Date through September 30, 2045), if Tenant proposes to Transfer this Lease to a Person that is not an Affiliate (and the proposed Transfer is not a Permitted Transfer), Landlord shall have a right of first refusal (the **"Right of First Refusal"**) to acquire the leasehold interest on the same terms and conditions as the proposed Transfer.

(b) **Notice.** Tenant shall deliver to Landlord a written notice (an **"Assignment Notice"**) setting forth the identity of the proposed transferee, the material terms of the proposed Transfer (including price), and a copy of the proposed assignment agreement or letter of intent (redacted to remove confidential or competitively sensitive information).

(c) **Exercise.** Landlord shall have sixty (60) days after receipt of the Assignment Notice to exercise the Right of First Refusal by written notice to Tenant. **If Landlord does not exercise within such period, or if Landlord exercises but fails to close within ninety (90) days thereafter (subject only to customary closing conditions), the Right of First Refusal shall lapse with respect to such proposed Transfer, and Tenant may proceed with the Transfer to the identified transferee on terms no more favorable to the transferee than those set forth in the Assignment Notice. If the Transfer does not close within one hundred eighty (180) days after the Assignment Notice, the Right of First Refusal shall be reinstated.**

(d) **Exclusions. The Right of First Refusal shall not apply to, and shall be deemed waived with respect to, any Permitted Transfer, including without limitation any grant of a Leasehold Mortgage, any foreclosure, deed in lieu of foreclosure, or other exercise of remedies by a Leasehold Mortgagee, any assignment by a Leasehold Mortgagee or its designee, and any Transfer to an Affiliate.**

(e) **No Restraint on Financing. Landlord acknowledges and agrees that the Right of First Refusal shall not apply to, delay, condition, or otherwise impair (i) the granting, recording, administration, enforcement, or foreclosure of any Leasehold Mortgage, (ii) any collateral assignment of leases and rents, (iii) any pledge of Tenant's direct or indirect ownership interests in favor of a Leasehold Mortgagee, or (iv) any Transfer effected in connection with any of the foregoing.** Any provision of this Lease or of any recorded instrument to the contrary shall not apply to the matters

described in this Section 18.5(e), and Landlord shall be deemed to have waived the Right of First Refusal with respect to such matters.

Section 18.6 Amendment of Recorded Right of First Refusal. The Parties acknowledge that the Declaration of Right of First Refusal dated September 8, 2019 and recorded at Volume 405, Page 55 of the Port Calloway Land Records (the "Recorded ROFR") does not, by its terms, contain any exception or carve-out for transfers resulting from foreclosure, deed in lieu of foreclosure, the exercise of remedies by a leasehold mortgagee, or assignments by a leasehold mortgagee or its designee following a foreclosure or acceptance of a deed in lieu. As a condition to the Lease Commencement Date, Landlord shall execute, acknowledge, and record an amendment to the Recorded ROFR (in form reasonably satisfactory to Tenant and each Leasehold Mortgagee) that (a) incorporates the exceptions set forth in Sections 18.3 and 18.5, (b) confirms that the Recorded ROFR applies only to a Transfer of this Lease and not to any Leasehold Mortgage, collateral assignment, or pledge, and (c) confirms that the Recorded ROFR will not be asserted against any Leasehold Mortgagee, any purchaser at foreclosure, any transferee under a deed in lieu of foreclosure, or any designee or affiliate of any of them. Landlord shall deliver such recorded amendment, together with evidence of recordation, on or before the Lease Commencement Date.

Section 18.7 Subletting. Tenant may sublease or license space within the Project to residential, office, and retail tenants in the ordinary course of business without Landlord's consent. **A sublease of all or substantially all of the Premises to a single subtenant shall require Landlord's consent only if such sublease is for a term exceeding twenty-five (25) years, and in such case Landlord's consent shall not be unreasonably withheld, conditioned, or delayed and Landlord may not exercise the Right of First Refusal in respect thereof. Landlord shall have no right to approve the identity, creditworthiness, or rent of any subtenant, or to review any sublease.**

Section 18.8 No Release. No Transfer shall release Tenant from its obligations under this Lease accruing prior to the Transfer, except that a Transfer of this Lease in compliance with this Article 18 shall release the transferor from obligations accruing after the date of the Transfer, provided the transferee assumes this Lease in writing.

Section 18.9 Landlord's Transfer of Fee Interest. Landlord may not transfer its fee interest in the Premises except subject to this Lease, and any transferee shall be deemed to have assumed Landlord's obligations under this Lease. Landlord shall deliver written notice to Tenant and each Leasehold Mortgagee within ten (10) Business Days after any transfer of its fee interest. **Landlord shall not be released from liability for obligations arising prior to the transfer.**

Section 18.10 Right of First Opportunity to Purchase Fee. If at any time during the Term Landlord proposes to sell, convey, or otherwise dispose of its fee interest in the Premises to a Person other than a Governmental Authority, Tenant shall have a right of first opportunity to purchase the fee interest on the same terms as the proposed disposition, exercisable by written notice within thirty (30) days after receipt of Landlord's notice describing the proposed terms. This Section 18.10 shall not apply to (a) any transfer to a Governmental Authority, (b) any transfer required by law, or (c) any encumbrance or mortgage.

ARTICLE 19 — DEFAULT AND REMEDIES

Section 19.1 Tenant Events of Default. Each of the following is an **"Event of Default"** by Tenant:

(a) **Monetary.** Failure by Tenant to pay any installment of Base Rent, Percentage Rent, or any other monetary obligation under this Lease when due, which failure continues for ten (10) Business Days after written notice from Landlord that such payment is past due;

(b) **Non-Monetary.** Failure by Tenant to perform or observe any material non-monetary obligation under this Lease, which failure continues for thirty (30) days after written notice from Landlord specifying the failure in reasonable detail, or, if such failure cannot reasonably be cured within thirty (30) days, failure by Tenant to commence cure within such thirty (30) day period and thereafter diligently prosecute such cure to completion;

(c) **Milestone.** Failure by Tenant to achieve Milestone 1 or Milestone 3, as extended, **subject to the Milestone Cure Period and the Mortgagee Cure Period and the provisions of Article 5, which shall govern exclusively with respect to such failure**;

(d) **Insolvency.** The filing by Tenant of a voluntary petition in bankruptcy or seeking relief under any insolvency law, the entry of an order for relief against Tenant in an involuntary proceeding that is not dismissed within ninety (90) days, the making by Tenant of a general assignment for the benefit of creditors, or the appointment of a receiver or trustee for Tenant or a substantial part of its assets that is not discharged within ninety (90) days; **provided that none of the foregoing shall constitute a basis for termination of this Lease unless and until the Leasehold Mortgagee has been afforded its rights under Sections 17.5, 17.6(f), and 17.9**;

(e) **Abandonment.** Abandonment of the Premises by Tenant for a continuous period of one hundred eighty (180) days without payment of Rent and without the consent of Landlord, **other than during any period in which Tenant is prevented from operating by Casualty,**

Condemnation, Force Majeure, or a governmental order, or during construction; and

(f) **Misrepresentation.** Any material misrepresentation by Tenant in this Lease or in any certificate delivered under it, **provided that Landlord's sole remedy for a misrepresentation that is curable shall be specific performance and damages, and not termination**.

Section 19.2 Landlord's Remedies. Upon the occurrence and during the continuance of an uncured Event of Default by Tenant, Landlord may exercise only the following remedies, which are **exclusive**:

(a) terminate this Lease by written notice to Tenant and each Leasehold Mortgagee, subject to Article 5 (in the case of a Milestone failure) and Section 17.6 (in all cases);

(b) recover from Tenant the amount of any Rent and other sums then due and unpaid, together with interest at the rate set forth in Section 6.8 and Landlord's reasonable costs of enforcement, including attorneys' fees;

(c) draw upon the Security Deposit in accordance with Section 10.5;

(d) seek specific performance of Tenant's obligations;

(e) recover damages for the period prior to termination, **measured by the Rent and other sums due and unpaid and Landlord's documented out-of-pocket costs, and in no event including consequential, punitive, speculative, or indirect damages, or the loss of the value of the reversion**; and

(f) exercise the Reverter Right in the case of a Milestone failure, strictly in accordance with Article 5.

Landlord shall have no right (i) to accelerate Rent, (ii) to recover rent for any period after termination except as expressly permitted by applicable law and then only to the extent of Landlord's net loss after reasonable mitigation, (iii) to forfeit the Improvements, (iv) to levy against Tenant's personal property, or (v) to exercise any remedy not expressly set forth in this Section 19.2.

Section 19.3 Notice and Cure as Condition Precedent. No Event of Default shall be deemed to exist, and Landlord shall have no right to exercise any remedy, unless Landlord has delivered the written notice required by Section 19.1 and the applicable cure period has expired without cure. **Delivery of a notice of default to Tenant without simultaneous delivery to each Leasehold Mortgagee shall be void.**

Section 19.4 Landlord Events of Default. Each of the following is an **"Event of Default"** by Landlord: (a) failure by Landlord to perform or observe any material obligation under this Lease, including any obligation under Article 3, Article 4, Article 5, Article 8, Article 9, or Article 17, which failure continues for thirty (30) days after written notice from Tenant specifying the failure, or, if

such failure cannot reasonably be cured within thirty (30) days, failure by Landlord to commence cure within such period and thereafter diligently prosecute cure to completion; (b) any breach of Landlord’s representations and warranties in Article 3 or Article 9; (c) any failure to pay an amount due to Tenant under this Lease within thirty (30) days after written demand; and (d) any transfer of the fee interest in violation of Section 3.9 or Section 18.9.

Section 19.5 Tenant’s Remedies. Upon the occurrence and during the continuance of an uncured Event of Default by Landlord, Tenant may exercise any or all of the following remedies, which are cumulative:

(a) **Offset.** Offset against Base Rent, as an Express Offset, the amount of any damages, cost, or expense incurred by Tenant by reason of Landlord’s default, including the cost of curing Landlord’s default, together with interest at the rate set forth in Section 6.8;

(b) **Self-Help.** Perform Landlord’s obligation on Landlord’s behalf, and charge the cost thereof to Landlord as an Express Offset, provided Tenant has given Landlord the notice and cure period required by Section 19.4 and Landlord has failed to perform;

(c) **Specific Performance.** Seek specific performance of Landlord’s obligations, and Landlord expressly agrees that its obligations under Article 3, Article 4, Article 5, Article 8, Article 9, Article 17, and Article 18 are specifically enforceable;

(d) **Damages.** Recover damages, including consequential damages to the extent proximately caused by Landlord’s default and reasonably foreseeable;

(e) **Termination.** Terminate this Lease if Landlord’s default is material and incapable of cure, or if Landlord fails to cure within ninety (90) days after notice, and in such event recover from Landlord the value of Tenant’s leasehold estate, including the Appraised Value of the Improvements, as damages; and

(f) **Suspension of Rent.** Suspend payment of Base Rent during the continuance of a Landlord default that renders the Premises untenantable or materially interferes with Tenant’s construction or operation of the Project.

Section 19.6 Landlord’s Liability; No Limitation to Premises. Landlord’s obligations under this Lease are full recourse obligations of Landlord, payable from all funds and assets available to Landlord, and are not limited to Landlord’s interest in the Premises. Landlord shall not assert, and hereby waives, any defense based on (a) the absence of an appropriation, (b) the lack of a budget line item, (c) governmental or sovereign immunity as to its contractual obligations, to the extent such immunity may be waived under applicable law, or (d) the public purpose of its functions. **Tenant’s right of offset under Section 19.5(a) is expressly agreed by Landlord to be a**

permissible contractual remedy and shall not be subject to any statutory or municipal limitation on the attachment of public funds.

Section 19.7 Mitigation. Both Parties shall use commercially reasonable efforts to mitigate damages arising from the other's default. Landlord shall have no claim for damages in respect of any period during which Landlord has re-let or could reasonably have re-let the Premises, and any recovery by Landlord shall be reduced by the amount of rent Landlord receives or could reasonably have received.

Section 19.8 Waiver; Notice of Default. No waiver by either Party of any default shall be effective unless in writing and shall not be a waiver of any subsequent default. No delay or omission in exercising any right shall impair that right.

Section 19.9 No Right of Re-Entry on Milestone Failure Without Article 5. Nothing in this Article 19 shall be construed to permit Landlord to re-enter or take possession of the Premises, or to take title to the Improvements, on account of a Milestone failure except strictly in accordance with Article 5.

Section 19.10 Force Majeure. Neither Party shall be liable for any failure or delay in performance (other than the payment of money, except to the extent payment is excused by an Express Offset) caused by a Force Majeure Event (an **"Unavoidable Delay"**), provided the affected Party gives notice within a reasonable time and uses commercially reasonable efforts to resume performance. **Rent shall not abate by reason of a Force Majeure Event except as expressly provided in Article 15 and Article 16.**

ARTICLE 20 — SURRENDER AND END OF TERM

Section 20.1 Surrender at Expiration. Upon the expiration of the Term on September 30, 2124, or upon any earlier termination of this Lease, Tenant shall surrender the Premises and the Improvements to Landlord in good condition and repair, reasonable wear and tear, Casualty, Condemnation, and Obsolescence excepted, free and clear of all liens and encumbrances created by Tenant (other than Permitted Exceptions and subleases permitted or approved under this Lease), and free of all occupants other than subtenants under subleases permitted under Article 18, which subleases shall be assigned to Landlord at Landlord's election without consideration.

Section 20.2 Ownership at Expiration. Upon the expiration of the Term (and not before), all Improvements shall become the sole property of Landlord without payment, compensation, or reimbursement to Tenant, and Tenant shall have no obligation to remove the Improvements. Tenant shall be entitled to remove its Trade Fixtures and personal property at any time, including during the final year of the Term, provided Tenant repairs any damage caused by removal.

Section 20.3 No Surrender on Reverter. Nothing in this Section 20.3 shall limit or modify Article 5, and no surrender of the Improvements shall be

required, and no title to the Improvements shall pass to Landlord, upon any Reverter Termination unless and until the Improvement Compensation has been paid in accordance with Section 5.5.

Section 20.4 Early Termination by Tenant. Tenant may terminate this Lease upon ninety (90) days' prior written notice to Landlord and each Leasehold Mortgagee if (a) the Premises are rendered unusable for the Permitted Uses by a Casualty or Condemnation and Article 15 or Article 16 so provides, (b) Landlord's uncured Event of Default is material and incapable of cure and Tenant has elected to terminate under Section 19.5(e), or (c) the conditions precedent in Section 2.5 are not satisfied by the Conditions Outside Date and Tenant has elected to terminate under Section 2.5. **No termination by Tenant shall be effective until each Leasehold Mortgagee has been given thirty (30) days' prior written notice and the opportunity to cure any default by Tenant giving rise to Landlord's objection.**

Section 20.5 Tenant's Option to Extend. Tenant shall have the right, exercisable by written notice to Landlord not less than twelve (12) months nor more than thirty-six (36) months prior to the Expiration Date, to extend the Term for one (1) additional period of twenty-five (25) years, on the same terms and conditions as this Lease, except that (a) Base Rent for the extension period shall be the greater of (i) the Base Rent in effect at the end of the initial Term, escalated by two and one-half percent (2.5%) per annum compounded for the final ten (10) Rent Years, and (ii) the Base Rent in effect at the end of the initial Term, escalated by the cumulative percentage increase in the CPI from the immediately preceding Reset Date through the month that is three (3) months prior to the commencement of the extension period (subject to the same four percent (4%) annual cap), and (b) the Breakpoint shall be adjusted in the same manner. The extension right shall be exercisable notwithstanding the existence of any Event of Default that has been cured prior to the exercise date. **The Parties acknowledge that the Term Sheet provided that no renewal options were contemplated; Tenant requests the extension right set forth in this Section 20.5 in order to preserve the financeability and marketability of the leasehold estate over the full Term, and Tenant's request is identified as an open negotiation item.**

Section 20.6 Holdover. If Tenant remains in possession after the expiration of the Term without Landlord's consent, Tenant shall be a tenant at sufferance, and Base Rent shall be payable at one hundred twenty-five percent (125%) of the Base Rent in effect immediately prior to expiration, but no holdover shall create a tenancy for any period beyond month-to-month, and Landlord's sole remedy shall be the recovery of possession and the holdover Base Rent.

ARTICLE 21 — LANDLORD COVENANTS AND PUBLIC BODY PROVISIONS

Section 21.1 Authority. Landlord represents and warrants that it is a public body corporate and politic duly organized and existing under Conn. Gen. Stat. §

8-125 *et seq.*, that it has full power and authority to own the Premises and to enter into and perform this Lease, that the execution and performance of this Lease have been authorized by Resolution No. 2025-047 and by all other action required under its enabling legislation and bylaws, and that no further approval of the Board of Commissioners, the City, or any other Governmental Authority is required for the execution and delivery of this Lease, other than (a) final approval by the Board of Commissioners of this Lease in its executed form to the extent such approval is required by Section 4(d) of Resolution No. 2025-047 and (b) approval of the Tax Abatement Agreement by the City.

Section 21.2 Records; Freedom of Information. Landlord shall assert all exemptions available under the Connecticut Freedom of Information Act, Conn. Gen. Stat. § 1-200 *et seq.*, including § 1-210(b)(5) (trade secrets and commercial or financial information) and § 1-210(b)(4) (records pertaining to strategy and negotiations with respect to pending claims or litigation), before disclosing any information concerning Tenant or the Project, and shall notify Tenant within five (5) Business Days after receipt of any request for records that may contain Tenant’s information so that Tenant may seek a protective order. **The Parties shall cooperate to structure public disclosures consistently with the confidentiality of Tenant’s financial information to the extent permitted by law.**

Section 21.3 No Personal Liability. No member, commissioner, officer, employee, or agent of Landlord shall be personally liable under this Lease, and Tenant shall look solely to Landlord’s assets for satisfaction of Landlord’s obligations.

Section 21.4 No Pledge of Credit. Nothing in this Lease shall be construed as a pledge of the full faith and credit of the City or the State of Connecticut.

Section 21.5 Estoppel Certificates. Each Party shall, within ten (10) Business Days after request, deliver an estoppel certificate substantially in the form of Exhibit G, and shall not request an estoppel more than twice in any twelve (12) month period except in connection with a financing, refinancing, or sale.

Section 21.6 Landlord’s Further Assurances. Landlord shall execute and deliver such instruments and take such actions as are reasonably necessary to give effect to this Lease, including the SNDA, the amendment to the Recorded ROFR, the amendment to the recorded Declaration of Restrictive Covenants, the Tax Abatement Agreement, the Memorandum of Lease, and such consents and estoppels as the Issuing Title Company or a Leasehold Mortgagee reasonably requires.

ARTICLE 22 — TENANT REPRESENTATIONS AND WARRANTIES

Section 22.1 Tenant’s Representations. Tenant represents and warrants to Landlord as of the Effective Date and the Lease Commencement Date that: (a) Tenant is a limited liability company duly organized, validly existing, and in good

standing under the laws of the State of Delaware, and is authorized to transact business in the State of Connecticut; (b) Tenant has full power and authority to execute, deliver, and perform this Lease, and the execution and delivery have been duly authorized by all necessary action of Tenant and its members; (c) this Lease is the valid and binding obligation of Tenant, enforceable in accordance with its terms, subject to applicable bankruptcy and equitable principles; (d) no litigation, arbitration, or governmental proceeding is pending or, to Tenant's knowledge, threatened against Tenant that would materially and adversely affect Tenant's ability to perform this Lease; (e) Tenant has not dealt with any broker or finder in connection with this Lease; and (f) Tenant is not a Person with whom Landlord is prohibited from transacting business under applicable law.

Section 22.2 Tenant's Covenants. Tenant shall (a) maintain its existence in good standing in Delaware and its authority to do business in Connecticut; (b) deliver to Landlord, within one hundred twenty (120) days after the end of each fiscal year, unaudited financial statements of Tenant (and, upon request in connection with a proposed Transfer, such additional financial information as Landlord reasonably requires); (c) maintain insurance as required by Article 14; and (d) comply with the ELUR and Environmental Laws as provided in Article 9.

ARTICLE 23 — DISPUTE RESOLUTION; GOVERNING LAW

Section 23.1 Governing Law. This Lease shall be governed by and construed in accordance with the laws of the State of Connecticut, without regard to its conflict of laws principles.

Section 23.2 Mediation. Except as provided in Section 23.3, any dispute arising out of or relating to this Lease shall first be submitted to non-binding mediation before a single mediator mutually selected by the Parties (or, if they cannot agree within fifteen (15) days, selected by the American Arbitration Association or JAMS) in Port Calloway, Connecticut. The mediation shall be commenced within thirty (30) days after written request and shall be concluded within sixty (60) days after commencement. The Parties shall share the mediator's fees equally and bear their own costs. **The mediation requirement does not apply to (a) any action seeking injunctive relief, specific performance in an emergency, or the appointment of a receiver, (b) the exercise of any Express Offset, or (c) the appraisal procedures in Section 5.6.**

Section 23.3 Litigation. If mediation does not resolve the dispute, either Party may bring an action in the Superior Court of the State of Connecticut, Judicial District of New Haven, or, if such court lacks jurisdiction, in any court of competent jurisdiction in Connecticut. **Each Party irrevocably submits to the personal jurisdiction of such courts and waives any objection based on venue or forum non conveniens.** The Parties acknowledge that the Term Sheet referred to the "Judicial District of Port Calloway," which is not an

established judicial district of the Connecticut Superior Court; the Parties therefore designate the Judicial District of New Haven.

Section 23.4 Attorneys' Fees. In any action or proceeding to enforce or interpret this Lease, the prevailing Party shall be entitled to recover its reasonable attorneys' fees and costs from the non-prevailing Party.

Section 23.5 Jury Waiver. TO THE EXTENT PERMITTED BY APPLICABLE LAW, EACH PARTY KNOWINGLY, VOLUNTARILY, AND INTENTIONALLY WAIVES ANY RIGHT TO A TRIAL BY JURY IN ANY ACTION ARISING OUT OF OR RELATING TO THIS LEASE. The Parties acknowledge that this waiver is a material inducement to the other Party's entry into this Lease.

Section 23.6 Equitable Relief. The Parties agree that irreparable harm would result from a breach of Article 5, Article 17, or Article 18, and that equitable relief (including specific performance and injunctive relief) shall be available without the necessity of proving actual damages or posting a bond.

ARTICLE 24 — MISCELLANEOUS

Section 24.1 Entire Agreement. This Lease, including its Exhibits, supersedes the Term Sheet dated June 10, 2025 and all prior and contemporaneous negotiations, understandings, and agreements between the Parties with respect to the Premises, and constitutes the entire agreement of the Parties. **The Parties acknowledge that this Lease departs from the Term Sheet in certain respects identified in the transmittal letter accompanying this draft, and that the Term Sheet is of no further force or effect except to the extent this Lease expressly refers to it.**

Section 24.2 Amendment. This Lease may be amended only by a written instrument executed by both Parties and consented to by each Leasehold Mortgagee in accordance with Section 17.7.

Section 24.3 Notices. All notices, consents, demands, and other communications under this Lease shall be in writing and shall be deemed given (a) when delivered by hand, (b) one (1) Business Day after deposit with a nationally recognized overnight courier, or (c) three (3) Business Days after deposit in the United States mail, certified or registered, return receipt requested, postage prepaid, addressed as follows (or to such other address as a Party designates by notice):

> **If to Landlord:** City of Port Calloway Redevelopment Authority, 75 Municipal Plaza, Port Calloway, CT 06801, Attention: Executive Director, with a copy to Pryor Whitfield & Koss LLP, 55 Courthouse Square, Port Calloway, CT 06801, Attention: Howard Koss, Esq.
>
> **If to Tenant:** Meridian Gateway Holdings LLC, 400 Harborview Drive, Suite 1200, Port Calloway, CT 06801, Attention: Marcus Ellison, Managing Member, with a copy to Hargrove & Linden LLP, 1100 Constitution Avenue, Hartford, CT 06103, Attention: Rebecca Tsang, Esq.

If to a Leasehold Mortgagee: at the address designated in accordance with Section 17.3.

Section 24.4 Successors and Assigns. This Lease binds and benefits the Parties and their respective permitted successors and assigns.

Section 24.5 Severability. If any provision of this Lease is held invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the invalid provision shall be reformed to the minimum extent necessary to make it enforceable while preserving the Parties' intent.

Section 24.6 No Partnership. Nothing in this Lease creates a partnership, joint venture, or principal-agent relationship between the Parties, and Landlord shall have no interest in the profits or losses of the Project except as expressly provided in Article 7.

Section 24.7 Time of the Essence. Time is of the essence with respect to each date and period set forth in this Lease, subject to Sections 4.3, 4.4, and 19.10.

Section 24.8 Counterparts; Electronic Signatures. This Lease may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one instrument. Electronic signatures shall be valid and binding.

Section 24.9 Recording. Neither Party shall record this Lease or any memorandum of it except as provided in Section 2.7. Upon the expiration or earlier termination of this Lease, Tenant shall execute and deliver a release and discharge of the Memorandum of Lease in recordable form within thirty (30) days after request, **provided that no such release shall be required in connection with a Reverter Termination unless and until the Improvement Compensation has been paid**.

Section 24.10 Survival. The provisions of Sections 3.6, 5.5, 5.6, 5.8, 6.7, 7.8, 8.7, 9.4, 9.5(d), 9.7, 10.8, 16.3, 19.5, 19.6, 19.7, and Articles 23 and 24 shall survive the expiration or earlier termination of this Lease.

Section 24.11 Interpretation of Certain Dates. Where this Lease states a date calculated from the anticipated Lease Commencement Date of October 1, 2025 (including April 1, 2027, April 1, 2029, October 1, 2030, October 1, 2032, October 1, 2028, and October 1, 2114), and the actual Lease Commencement Date is later, the corresponding date shall be adjusted to the corresponding anniversary of the actual Lease Commencement Date.

Section 24.12 OFAC and Anti-Terrorism. Each Party represents that neither it nor any Person owning a direct or indirect interest in it is a Person with whom transactions are prohibited under applicable anti-terrorism or sanctions laws.

Section 24.13 Conflicts. In the event of a conflict between the body of this Lease and any Exhibit, the body of this Lease shall control, except that Exhibit A (Legal Description) shall control as to the description of the Premises and

Exhibit H (Tenant Remediation Scope) shall control as to the scope of the Remediation.

IN WITNESS WHEREOF, the Parties have executed and delivered this Lease as of the Effective Date.

LANDLORD:

CITY OF PORT CALLOWAY REDEVELOPMENT AUTHORITY

By: _____

Name: Paul Castignetti

Title: Executive Director

Date: _____

TENANT:

MERIDIAN GATEWAY HOLDINGS LLC

By: _____

Name: Marcus Ellison

Title: Managing Member

Date: _____

[Separate acknowledgments and notarial certificates to be attached for recordation as part of the Memorandum of Lease, in the form required by Conn. Gen. Stat. § 47-7. Landlord's execution must be accompanied by a certified copy of Resolution No. 2025-047 and evidence of the Board's approval of this Lease in its executed form, as required by Section 4(d) of such Resolution.]

EXHIBIT A — LEGAL DESCRIPTION OF THE PREMISES

All that certain piece or parcel of land situated in the City of Port Calloway, County of New Haven, State of Connecticut, bounded and described as follows:

BEGINNING at a point at the intersection of the southerly line of Pier Street (a 60-foot public right-of-way) and the easterly line of Harbor Avenue (a 50-foot public right-of-way), said point being the northwest corner of the herein-described parcel, marked by a found 5/8-inch iron rebar;

THENCE running South 78 degrees 15 minutes 30 seconds East along the southerly line of Pier Street, a distance of Four Hundred Thirty-Five and 22/100 feet (435.22') to a point at the northeast corner of the herein-described parcel, said point being on the westerly line of the 15-foot public pedestrian access easement recorded at Volume 395, Page 112 of the Port Calloway Land Records, marked by a found 5/8-inch iron rebar;

THENCE running South 11 degrees 44 minutes 30 seconds West along the westerly line of said pedestrian access easement and along the bulkhead line, a distance of Three Hundred Twenty and 47/100 feet (320.47’) to a point at the southeast corner of the herein-described parcel, said point being on the northerly boundary of Assessor’s Parcel No. 127-003-0044 (City of Port Calloway Redevelopment Authority, reserved for future park development), marked by a set 5/8-inch iron rebar with aluminum cap stamped “PLS 008741”;

THENCE running North 78 degrees 15 minutes 30 seconds West along the northerly line of said Assessor’s Parcel No. 127-003-0044, a distance of Four Hundred Thirty-Five and 22/100 feet (435.22’) to a point at the southwest corner of the herein-described parcel, said point being on the easterly line of Harbor Avenue, marked by a set 5/8-inch iron rebar with aluminum cap stamped “PLS 008741”;

THENCE running North 11 degrees 44 minutes 30 seconds East along the easterly line of Harbor Avenue, a distance of Three Hundred Twenty and 47/100 feet (320.47’) to the POINT OF BEGINNING.

Containing 139,392 square feet (3.200 acres), more or less, as stipulated by Section 2.2(b) of the Lease.

Basis of Bearings: Connecticut State Plane Coordinate System, NAD83 (2011), South Zone.

Vertical Datum: NAVD88, as determined by GPS observation of NGS benchmark “CALLOWAY 2” (PID: DK1847), elevation 8.142 feet NAVD88.

Reference: Being a portion of the land conveyed to the City of Port Calloway Redevelopment Authority by Final Order of Condemnation recorded in the Port Calloway Land Records, dated June 15, 2012.

Survey Reference: ALTA/NSPS Land Title Survey prepared by Calloway Land Surveyors LLC, Thomas R. Pellegrino, PLS (Connecticut License No. PLS-008741), Survey Job No. CLS-2025-0417, field survey April 20, 2025, plat dated April 28, 2025, Sheets 1 of 2 and 2 of 2.

Subject to the Permitted Exceptions set forth in Exhibit C.

> **Drafting Note (to be deleted before execution):** This description is the description certified in the Survey and is the only description of record that closes within the ALTA precision standard (it closes exactly; the precision ratio exceeds 1:15,000, the ratio certified by the surveyor). It does **not** match the metes and bounds set forth in Exhibit A to Title Commitment No. TC-2025-07821, which (i) uses different bearings and distances (580.00’ and 480.00’ along the Pier Street and bulkhead lines, as against 435.22’ and 320.47’), (ii) computes to approximately 279,535 square feet (6.417 acres) rather than the 139,392 square feet (3.2 acres) stated in the same document, and (iii) closes at a precision ratio of approximately 1:1,927. The commitment description appears to describe the entire parent tract acquired by the Authority in the 2012 condemnation, from which

Assessor’s Parcel No. 127-003-0044 has been notionally divided. Landlord must cause the Issuing Title Company to conform its commitment and policy to this Exhibit A and to identify the record instrument (or recorded subdivision or lot line revision) that establishes the boundary between APN 127-003-0045 and APN 127-003-0044.

EXHIBIT B — SURVEY

The Survey referenced in Section 2.2 of the Lease, consisting of the ALTA/NSPS Land Title Survey prepared by Calloway Land Surveyors LLC, Thomas R. Pellegrino, PLS (Connecticut License No. PLS-008741), Survey Job No. CLS-2025-0417, field survey dated April 20, 2025, plat dated April 28, 2025 (Sheets 1 of 2 and 2 of 2), together with the Surveyor’s certification, is on file with the Parties and the Issuing Title Company and is incorporated by reference. The Table A items requested are Items 1, 2, 3, 4, 5, 6(a), 6(b), 7(a), 7(b)(1), 7(c), 8, 9, 10, 11(a), 11(b), 13, 14, 16, 17, 18, and 19. Tenant shall cause the Survey to be updated or re-certified if and to the extent required by the Leasehold Mortgagee.

EXHIBIT C — PERMITTED EXCEPTIONS

The leasehold estate is subject to the following Permitted Exceptions:

1. **Environmental Land Use Restriction** recorded March 22, 2018, at Volume 412, Page 88 of the Port Calloway Land Records, as modified pursuant to Section 9.3(b) of the Lease.

2. **Public utility easement**, twenty (20) feet in width, along the northern boundary of the Premises (Pier Street frontage), recorded at Volume 388, Page 201 of the Port Calloway Land Records, for underground electric and sewer facilities, together with the rights of ingress and egress appurtenant thereto.

3. **Public pedestrian access easement**, fifteen (15) feet in width, along the eastern waterfront boundary of the Premises, recorded at Volume 395, Page 112 of the Port Calloway Land Records.

4. **Right of First Refusal** in favor of the City of Port Calloway Redevelopment Authority, as set forth in the Declaration of Right of First Refusal dated September 8, 2019 and recorded at Volume 405, Page 55 of the Port Calloway Land Records, **as amended pursuant to Section 18.6 of the Lease to exclude Leasehold Mortgages, collateral assignments, pledges, foreclosures, deeds in lieu of foreclosure, and transfers by or to a Leasehold Mortgagee or its designee**.

5. **Affordable Housing Restrictive Covenant**, as set forth in the Declaration of Restrictive Covenants dated November 15, 2019 and recorded at Volume 408, Page 230 of the Port Calloway Land Records, **as amended pursuant to Section 11.5(b) of the Lease to limit the affordable housing obligation to the Affordable Housing Period**.

6. **Real property taxes and assessments** for the fiscal year commencing July 1, 2025, and thereafter, not yet due and payable, as allocated by Article 8 of the Lease.

7. **Zoning, land use, building, coastal, wetlands, and floodplain regulations** of applicable Governmental Authorities, including the Port Calloway Zoning Regulations for the WRD-3 district, and the matters depicted on FEMA Flood Insurance Rate Map Panel No. 09009C0301G (effective January 15, 2020).

8. **Residual rights** reserved to or by the public in connection with the 2012 condemnation proceedings by which Landlord acquired the Premises, **to the extent, and only to the extent, that the Issuing Title Company agrees to insure over such rights without exception in the Title Policies**.

9. **Rights of subtenants** under subleases permitted or approved under Article 18 of the Lease.

The following matters are expressly NOT Permitted Exceptions and must be removed from title (or insured over without exception) before the Lease Commencement Date: (a) the mechanics' lien filed by Calloway Marine Demolition Inc. on April 3, 2025 in the amount of $187,500, recorded at Volume 418, Page 302 of the Port Calloway Land Records (Section 3.6 of the Lease); (b) any general survey exception or "rights of parties in possession" exception, to the extent the Issuing Title Company will remove or insure over the same upon delivery of Landlord's affidavit; and (c) any matter objected to by Tenant or the Leasehold Mortgagee that is not listed above.

EXHIBIT D — FORM OF MEMORANDUM OF LEASE

[To be prepared in recordable form, executed and acknowledged by both Parties, and recorded in the Port Calloway Land Records simultaneously with the execution of the Lease. The Memorandum shall contain: the identity of the Parties; a reference to the Lease; the Term (commencement and expiration dates); the initial annual Base Rent; Tenant's exclusive right to use and occupy the Premises for the Permitted Uses; the existence and terms of Tenant's right to grant Leasehold Mortgages and the protections afforded to Leasehold Mortgagees under Article 17; Tenant's option to extend under Section 20.5; the Permitted Exceptions; and a statement that the Memorandum is not intended to modify the Lease, which controls in the event of any conflict. The Memorandum shall not disclose Percentage Rent, the Breakpoint, or other confidential economic terms.]

EXHIBIT E — FORM OF SUBORDINATION, NON-DISTURBANCE, AND ATTORNMENT AGREEMENT

[To be negotiated among Landlord, Tenant, and the Leasehold Mortgagee, containing at a minimum the provisions required by Section 17.4 of the Lease

and the following: (i) Landlord's acknowledgment of the first priority of the Leasehold Mortgage; (ii) non-disturbance of the Leasehold Mortgagee's interest and of any purchaser at foreclosure; (iii) attornment and recognition of the Leasehold Mortgagee or its designee as Tenant without Landlord approval or transfer fee; (iv) the notice and cure rights in Sections 5.4, 17.3, and 17.6; (v) the New Lease right in Section 17.5; (vi) the prohibition on voluntary surrender and material amendment in Section 17.7; (vii) restoration and proceeds provisions consistent with Articles 15 and 16; (viii) Landlord's representation that it has not encumbered the fee interest and its covenant not to do so except in compliance with Section 3.9; and (ix) mutual notice provisions. The SNDA shall be recordable and shall be recorded in the Port Calloway Land Records as required by Requirement No. 6 of Title Commitment No. TC-2025-07821.]

EXHIBIT F — FORM OF LEASEHOLD MORTGAGEE RECOGNITION AND NEW LEASE AGREEMENT

[To be attached, incorporating the New Lease right in Section 17.5 of the Lease and providing the mechanism by which the Leasehold Mortgagee or its designee obtains, executes, and records a New Lease following any termination of the Lease, including the form of New Lease, the thirty (30) day execution deadline, the effective date, the assumption of subleases, and the recognition of priority.]

EXHIBIT G — FORM OF ESTOPPEL CERTIFICATE

[To be attached, addressing: the Commencement Date, the Rent Commencement Date, the Base Rent then in effect, the status of the Remediation Credit, the amount of the Security Deposit, the Term, any unpaid Rent, the existence of any default or offset, the Permitted Exceptions, the status of the Tax Abatement Agreement, and such other matters as a Leasehold Mortgagee or purchaser may reasonably request.]

EXHIBIT H — TENANT REMEDIATION SCOPE AND COST ALLOCATION

1. Scope. Tenant shall perform the following in respect of the two areas of contamination identified in the Phase II Environmental Site Assessment dated May 2, 2025 (Halcyon Project No. HEC-2025-0412):

Area	Location	Impacted Area	Maximum TPH Detected	Estimated Volume	Estimated Cost
Area 1	Northwest corner (former UST area)	~4,200 SF	3,800 mg/kg (SB-3, 4–6 ft bgs)	~933 CY excavation; ~3,100 CY material handling	$1,850,000
Area 2	Former dry	~1,600 SF	1,200	~600 CY	$550,000

Area	Location	Impacted Area	Maximum TPH Detected	Estimated Volume	Estimated Cost
	dock area		mg/kg (SB-15, 6–8 ft bgs)		
Total		**~5,800 SF**			**$2,400,000**

2. Methods. Excavation and off-site disposal of impacted soil to a licensed facility; confirmation sampling and laboratory analysis to demonstrate compliance with the applicable criteria under the RSRs (as stated in the Phase II Environmental Site Assessment, a TPH/ETPH criterion of 500 mg/kg); clean backfill; reconstruction of the engineered barrier in accordance with the ELUR; and preparation of a Remedial Action Plan, Soil Management Plan, and Verification Report for DEEP approval and LEP certification.

3. Cost Allocation.

Item	Amount	Borne By
Total estimated cost of Tenant Remediation Scope	$2,400,000	—
Remediation Credit (against Base Rent)	($1,800,000)	Landlord
Tenant’s share (Section 9.4(c))	$600,000	Tenant
Any cost of the Tenant Remediation Scope above $2,400,000 in the aggregate	As incurred	**Landlord** (Section 9.4(c))
Pre-existing conditions outside the Tenant Remediation Scope; UST/LUST closure; ELUR modification; off-site migration; newly discovered contamination outside delineated areas; third-party and enforcement claims	As incurred	**Landlord** (Section 9.4(b))
Bulkhead rehabilitation/replaceme	Up to $4,500,000	**Landlord** (Section

Item	Amount	Borne By
nt attributable to pre-existing condition		4.11(b))
Dewatering and treatment if Tenant constructs below-grade improvements	As incurred	Tenant, subject to Section 4.12

4. Excluded from the Estimate. Consistent with the Phase II Environmental Site Assessment, the $2,400,000 estimate excludes: maintenance or modification of the ELUR; DEEP approval costs; the Remedial Action Plan, Soil Management Plan, and Verification Report costs; legal and consulting fees associated with ELUR compliance; bulkhead repair or replacement; groundwater dewatering and treatment; and any cost arising from contamination extending beyond the delineated areas.

EXHIBIT I — DEVELOPMENT MILESTONE SCHEDULE

Milestone	Definition	Deadline	Outside Date (assuming 10/1/2025 Lease Commencement)
1	Commencement of Construction (pouring of footings after issuance of building permits)	18 months after Lease Commencement Date	April 1, 2027
2	Completion of Structural Frame (topping-out of Residential Tower)	42 months	April 1, 2029
3	Substantial Completion of Phase 1 (Residential Tower and ground-floor retail)	60 months	October 1, 2030
4	Substantial Completion of Phase 2 (Office Building)	84 months	October 1, 2032

Extensions. Milestones 1 through 4 are extended day-for-day for (a) Force Majeure Events, up to twelve (12) months in the aggregate; (b) governmental permitting delays, up to six (6) additional months in the aggregate (18 months in total under Sections 4.3); and (c) without limitation, delays described in Section 4.4 (DEEP and environmental approvals, performance of the Remediation, discovery of undisclosed contamination, and changes in floodplain and coastal regulation).

Cure and Reverter. Only Milestones 1 and 3 are subject to the Reverter Right. Tenant has a 180-day Milestone Cure Period and each Leasehold Mortgagee has a 180-day Mortgagee Cure Period, running consecutively and in addition to the extensions above. Any Reverter Termination requires payment of the Improvement Compensation in accordance with Section 5.5.

EXHIBIT J — FORM OF LETTER OF CREDIT

[To be attached, meeting the requirements of Article 10 of the Lease: irrevocable standby letter of credit; issuing bank organized under the laws of the United States or any state thereof with a minimum rating of A- from S&P or A3 from Moody's; beneficiary City of Port Calloway Redevelopment Authority; initial amount $5,700,000, reducible to $2,850,000 upon satisfaction of the Reduction Conditions; draw conditions limited to uncured monetary Events of Default; evergreen or with at least one year's tenor and automatic renewal absent sixty (60) days' notice; partial draws permitted; transferable to a successor Landlord; governed by the Uniform Customs and Practice for Documentary Credits, ICC Publication No. 600, or the International Standby Practices (ISP98).]

EXHIBIT K — FORM OF AFFORDABLE HOUSING REGULATORY AGREEMENT

[To be attached, incorporating Section 11.5 of the Lease and addressing: the number and unit-type mix of affordable units; the fifteen percent (15%) calculation and recalculation method; upper-floor placement consistent with the ELUR; distribution within the Residential Tower; income verification and qualification procedures; annual reporting; the monitoring entity; the Affordable Housing Period (thirty (30) years); remedies limited to specific performance and monetary damages (no re-entry, no forfeiture); and the permitted use of low-income housing tax credits.]

EXHIBIT L — FORM OF TAX ABATEMENT AGREEMENT

[To be attached, to be entered into among Landlord, Tenant, and the City, providing: the fifteen (15)-year abatement period commencing on the Rent Commencement Date; the Applicable Percentages (25% / 50% / 75% / 100%); calculation on actual assessed value and actual mill rate; the City's covenant to assess and bill in accordance with the agreement; the Landlord's obligations

under Section 8.5; and Tenant's remedies under Section 8.7, including the cap on Tenant's Tax obligation and the offset right.]